

1621 Citizenship Status

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Participation in the Supplemental Nutrition Assistance Program is limited to U.S. citizens and certain non-citizens who are lawfully residing in the United States. Citizenship will be verified at each case action for all applicants, regardless of declared citizenship or alien status.

A United States citizen is:

- A person (other than the child of a foreign diplomat) born in the United States of America or in the District of Columbia, Puerto Rico, Guam, the U.S. Virgin Islands, or the Northern Mariana Islands, who has not renounced or otherwise lost his or her citizenship.
- A person born outside of the United States to at least one (1) U.S. citizen parent. (These individuals are sometimes referred to as “derivative citizens.”)
- A naturalized U.S. citizen.

Individuals who claim to be naturalized citizens must have completed all the requirements for citizenship, including swearing in, and must have verification of their status as a naturalized citizen before they can participate in the Supplemental Nutrition Assistance Program as a citizen. (If they do not meet these requirements, they may participate as a non-citizen if they meet the non-citizen requirements.)

A United States non-citizen national is:

- A person born in American Samoa or Swains Island on or after the date the U.S. acquired the possession of either territory. American Samoa was acquired April 17, 1900 and Swains Island was acquired March 4, 1925.
- A person whose parents are U.S. non-citizen nationals.

U.S. non-citizen nationals are treated as U.S. citizens.

The eligibility worker must accept participation in another program as acceptable verification if verification of citizenship or non-citizen national status was obtained for that program. For other household members, the eligibility worker may accept any of the following documents as proof of citizenship:

- Birth certificate showing birth in one (1) of the fifty (50) states, the District of Columbia, Puerto Rico, Guam, the U.S. Virgin Islands, American Samoa, and Swain’s Island or the Northern Marianna Islands;
- United States passports except for limited passports which are issued for a period of less than five (5) years;
- Report of birth abroad of a U.S. citizen issued by the Department of State;
- Certificate of birth by a foreign-service post;
- Certificate of Naturalization;
- Certificate of Citizenship issued to individuals who derive their citizenship through a parent;
- Northern Marianna Identification Card;

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- Statement provided by a U.S. consular officer certifying that the individual is a U.S. citizen
- American Indian Card with a classification code “KIC”; or
- Adoption Finalization Papers that show the child’s name and place of birth in the United States or one (1) of its territories.

If none of these documents is available, the alien may provide secondary evidence such as religious records, school records, or census records that indicate birth in the United States. If the household cannot obtain any of the forms listed above to verify citizenship and the household can provide a reasonable explanation as to why verification is not available, the eligibility worker will accept a signed statement, under penalty of perjury, from a third party indicating a personal knowledge that the member in question is a U.S. citizen or non-citizen national. The signed statement must contain a warning of the penalties for helping someone commit fraud.

In the absence of verification or third-party attestation of U.S. citizenship or non-citizen national status, the household member whose citizenship status is in question will be treated as an ineligible alien (see SNAP 1621.6) until the issue is resolved. A legal immigrant who has lived in the United States as a qualified alien for a period of five (5) years or longer may participate in the Supplemental Nutrition Assistance Program if otherwise eligible. See SNAP 1621.1.

Not all aliens who are residing in the United States are allowed to participate in the Supplemental Nutrition Assistance Program. With some exceptions, aliens will be allowed to receive SNAP benefits only if:

1. The alien meets the criteria to be classified as a “qualified alien”; and
2. The alien meets or is exempt from meeting one (1) of the conditions under which a “qualified alien” may receive SNAP benefits.

See SNAP 1621.1 for an explanation of a qualified alien.

An alien who will be allowed to participate in the Supplemental Nutrition Assistance Program is referred to as an “eligible alien.” However, “eligible aliens” must also meet Supplemental Nutrition Assistance Program requirements such as income and resource limits.

Ineligible aliens for SNAP include, but are not limited to, the following categories of individuals:

- Visitors and tourists;
- Students;
- Diplomats;
- Aliens admitted under color of law;
- Aliens who have applied for eligible status but have not yet been approved;
- Aliens who have questionable or unverified status;
- Aliens who have their deportation withheld;
- COFA citizens residing in American Samoa, Puerto Rico, or the Commonwealth of the Northern Mariana Islands (CNMI)

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The following are alien statuses that are not considered qualified alien statuses unless they also have Lawful Permanent Resident status:

- *Refugees admitted to the U.S. under §207 of the INA;
- *Aliens granted asylum under §208(b) of the INA (Asylees);
- *Afghan Nationals Granted Parole Between 07/31/2021-09/30/2023;
- *Ukrainian Nationals Granted Parole Between 02/24/2022-09/30/2024;
- Aliens granted parole into the U.S. under §212(d)(5) of the INA for a period of at least 1 year;
- *Iraqi and Afghan Special Immigrants (SIV)
 - Defined as: Special immigrant status under 101 (a) (27) of the INA granted to Iraqi and Afghan nationals who worked on behalf of the U.S. government in Iraq or Afghanistan;
- Conditional Entrants
 - Defined as: Conditional entry granted under 202 (a) (7) of the INA as in effect before 04/01/1980;
- Battered Aliens
 - Defined as: Under certain conditions, a battered alien spouse or child, an alien parent of a battered child, or an alien child of a battered parent with a petition pending; or
- *Victims of Severe Trafficking and Certain Family Members
 - Defined as: Victims under the Trafficking Victims Protection Act of 2000 and family members granted derivative T nonimmigrant status.
- *American Indians Born Abroad
 - Defined as: American Indians born in Canada living in the United States (U.S.) under §289 of the Immigration and Nationality Act (INA) or alien members of a federally recognized Indian tribe under §4(e) of the Indian Self-Determination and Education Assistance Act when the tribe is recognized as eligible for the special programs and services provided by the U.S. to Indians because of their status as Indians. (This provision covers Native Americans who are entitled to cross the United States border into Canada or Mexico. These Indian tribes include, among others, the St. Regis band of the Mohawk in New York State, the Micmac in Maine, the Abenaki in Vermont, and the Kickapoo in Texas.)
- *Hmong or Highland Laotian Tribal Members
 - Defined as: An individual lawfully residing in the U.S. who was a member of a Hmong or Highland Laotian tribe at the time the tribe rendered assistance to United States personnel by taking part in a military or rescue operation during the Vietnam era beginning August 5, 1964, and ending May 7, 1975. The spouse or surviving spouse (if not remarried) and unmarried, dependent children (natural or legally adopted) of such an individual may also receive SNAP benefits if otherwise eligible. (This includes unmarried, dependent children eighteen (18) years of age or younger, unmarried, dependent children between eighteen and twenty-two (18-22) years of age who attend school full time, and unmarried, dependent disabled children eighteen (18) years of age and older so long as the child was disabled and dependent prior to his or her eighteenth (18th) birthday. It also includes the

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unmarried children of a deceased tribe member if the child meets one (1) of the criteria stated above and was dependent on the tribe member at the time of his or her death.)

- *Aliens that have deportation withheld under §243(h) of the INA as in effect before 04/01/97, or removal is withheld under §241(b)(3) of the INA.

All above-mentioned statuses, if in LPR status, must meet either the five-year bar or forty (40) working quarter requirement to be considered an eligible alien for SNAP purposes with the exception of those marked with an asterisk.

1621.1 Qualified Aliens

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The alien statuses marked with asterisks above, in this policy section, and SNAP 1621.3 are eligible for SNAP immediately if other eligibility criteria, such as residency, income, or SSN, are met. They are not subject to additional conditions such as the five-year bar and the forty (40) working quarter requirements.



NOTE: If a qualified alien, defined below, is in a category that is exempt from meeting additional conditions (those marked with asterisks) and later adjusts to a Lawful Permanent Resident (LPR) status, they do not have to meet the five-year bar.

A qualified alien is:

- A Lawful Permanent Resident (LPR), or “Green Card” holder, who is lawfully authorized to live permanently in the United States.
- An alien who is a Cuban or Haitian entrant as defined in section 501(e) of the Refugee Education Assistance Act of 1980.*
- Amerasians as defined under section 584 of the Foreign Operations, Export Financing and Related Programs Appropriations Act of 1988.*
- Compacts of Free Association (COFA) citizens of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau who lawfully reside in the United States.*

1621.1.1 Battered Aliens

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1621.1.2 Verifying Alien Status

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Eligibility workers should verify alien or immigration and citizenship status at every case action. Common, acceptable documents applicants may provide includes but are not limited to:

- I-551, Lawful Permanent Resident Card;
- Permanent Resident Stamp;

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- I-766, Employment Authorization Document;
- Form I-94, Arrival/Departure Record;
- Unexpired Foreign Passport with Admission Stamp;
- Form-I-20, Certificate of Eligibility for Nonimmigrant Student Status;
- Form I-130, Petition for Alien Relative;
- DS-2019, Certificate of Eligibility for Exchange Visitor Status;
- Form I-862, Notice to Appear;
- Form I-797, Notice of Action;
- I-571, Refugee Travel Document;
- Form-I-327, Re-entry Permit;
- Form I-512, Authorization for Parole; and
- Form I-385, Alien Booking Record.

A copy of the FRONT AND BACK of the document used to verify immigration status must appear in the case record.

Eligibility workers should use documentation provided to enter information into the Systematic Alien Verification for Entitlements (SAVE) program, which aids in verifying immigration status. SAVE will provide a “Classification Code,” which will assist the worker in determining whether the alien is eligible for services. For SAVE to verify immigration status, the following information for the alien must be available:

- First name
- Last name
- Date of birth
- Benefit requested by applicant
- A minimum of ONE (1) immigration enumerator, a number assigned to an immigrant or immigration document. (Listing all enumerations on the document will ensure accuracy and shorten wait times). Enumerations include but are not limited to:
 - Alien/USCIS Number (commonly referred to as the A-number)
 - This number will range from six to nine (6-9) digits. Six-digit USCIS numbers require zeros (0's) to be entered at the beginning of the number to reach a total of nine (9).
 - Card Number/I-797 Receipt Number
 - This is a thirteen-character identifier that will consist of three (3) letters and ten (10) numbers.
 - I-94 Number
 - This is an eleven-character identifier.

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- SEVIS Identifier (only on Form I-20 or Form DS-2019)
 - This has a letter “N” followed by ten (10) numbers.
- Certificate of Citizenship Number
 - Contains one to two (1-2) letters followed by six to seven (6-7) digits.
- Certificate of Naturalization Number
 - Contains eight (8) alphanumeric characters.
- Visa Number
 - Contains seven to eight (7-8) alphanumeric characters.
- Foreign Passport Number

SAVE will also be used to verify citizenship, using the verification discussed in SNAP 1621.

1621.2 Participation for up to Seven (7) Years

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1621.3 Other Eligible Aliens

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Any of the following aliens may participate in the Supplemental Nutrition Assistance Program if otherwise eligible.

1. Any Lawful Permanent Resident (LPR) who has lived in the United States as a qualified alien for a period of five (5) years or longer may participate in the Supplemental Nutrition Assistance Program if he or she is otherwise eligible. See SNAP 1621.3.1.
2. Any Lawful Permanent Resident who is CURRENTLY ADMITTED FOR PERMANENT RESIDENCE as defined in Section 101(a)(2) of the INA and who can be credited with forty (40) quarters of work (their own, a spouse's or a parent's). See SNAP 1621.3.2 for instructions on determining if the alien meets forty (40) quarters of work.
3. Any qualified alien (as defined in SNAP 1621) that is on active duty in the military (excluding National Guard) or is an honorably discharged veteran whose discharge is not because of immigration status (includes spouses, surviving spouses who have not remarried, and unmarried dependent children). A discharge “Under Honorable Conditions,” does not meet this requirement. See 1621.3.3 for additional information about aliens with a military connection. *
4. Any qualified alien who was lawfully present, as defined in SNAP 1621, in the United States on August 22, 1996, and was age sixty-five (65) or older on August 22, 1996 (meaning, they were born on or before August 22, 1931), may participate in the Supplemental Nutrition Assistance Program for an unlimited time if he or she is otherwise eligible. *
5. Any qualified alien who is under eighteen (18) years of age may participate in the Supplemental Nutrition Assistance Program if otherwise eligible until he or she turns eighteen (18). * After the

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child turns eighteen (18), the child may continue to be eligible for SNAP benefits only if he or she meets another alien eligibility status such as having LPR status for five (5) years. If the child turns eighteen (18) during the household's upcoming certification period, the eligibility worker must take action to review the SNAP case prior to the month in which the child turns eighteen (18). If the eligibility worker cannot determine from the information in the case that the child meets another alien eligibility status, a Request For Contact (SNAP 12400) will be issued to the household. If the household does not respond to the Request For Contact or does not provide the information needed to determine the child's alien eligibility status, the case will not be closed. Instead, the child will be classified as an ineligible alien. (See SNAP 1621.6 for instructions on handling the income and resources of an ineligible alien. These instructions will also apply to the parent's income if the child is eligible but one (1) or both parents are not eligible.)

6. Any qualified alien who is currently receiving one (1) of the payments for blindness or disability listed in the glossary definition of "Age 60 or Older/Individuals with Disabilities," may participate in the Supplemental Nutrition Assistance Program for an unlimited time if he or she is otherwise eligible. *

1621.3.1 Participation after Five (5) Years as Qualified Alien

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Any alien who has lived in the United States as a qualified alien for a period of five (5) years or longer may participate in the Supplemental Nutrition Assistance Program if he or she is otherwise eligible. The Immigration and Naturalization Service (INS) has the sole responsibility for determining the status of an immigrant as a qualified alien. The five (5) year waiting period begins on the date the immigrant obtains status as a qualified alien through the INS.

A legal permanent resident may have been admitted to the United States under another alien status that confers qualified alien status that **was not** exempt from additional conditions. In that case, the five-year waiting period began on the date the alien became a qualified alien. When qualified alien status is granted retroactively, the retroactive time will count towards the five-year requirement.

If the documentation presented by the alien provides the date on which the alien was granted qualified alien status, this documentation may be used to verify that the alien has met the five-year waiting period. (See SNAP 1621.5 for instructions on using the SAVE system to authenticate the documentation.)

1621.3.2 Aliens Who Have Forty (40) Qualifying Quarters

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NOTE: Any alien legally admitted for permanent residence who has resided in the United States as a qualified alien for at least five (5) years may participate in the Supplemental Nutrition Assistance Program without establishing that he or she has forty (40) qualifying quarters of work. See SNAP 1621.3.1.

Aliens legally admitted for permanent residence who can be credited with at least forty (40) qualifying quarters of work under Title II of the Social Security Act are not prohibited from receiving SNAP benefits if the household is otherwise eligible.

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1621.3.2 Aliens Who Have Forty (40) Qualifying Quarters

A qualifying quarter of work includes quarters worked by the alien, by a parent (natural, adoptive, or step) of an alien while the alien was under eighteen (18) years of age, or by a spouse during a marriage if the alien remains married to the spouse or the spouse is deceased. (This does not include common-law marriages since such marriages are not recognized in Arkansas.) Quarters earned by a current spouse and one (1) or more deceased spouses can be added together and credited. In the case of a divorce, the former spouse's quarters can no longer be credited. At the household's next renewal, the alien's eligibility will be determined without crediting the alien with the former spouse's quarters of coverage.

If the alien lived with both parents, each parent's quarters will be counted individually. This means if both parents worked in the same quarter, this would count as two (2) qualifying quarters of work. This also includes any quarters worked by a parent before a child was born or before the child entered the U.S. In the case of a natural or adoptive child, the child may be credited with the quarters even if the child is not living with the parent due to death, separation or divorce. The relationship between stepparent and stepchild will be severed by divorce but not by death. Therefore, at the first renewal following the divorce, the quarters credited to a stepchild by a stepparent will no longer be credited to the child. Quarters of coverage earned by minor children cannot be credited to a parent. All quarters earned by a stepparent can be credited beginning with the quarter in which the marriage occurred if the marriage occurred before the alien turned eighteen (18) and did not end by divorce or annulment before the forty (40) quarters were credited. All quarters earned by an adoptive parent can be credited through the quarter in which the alien turns eighteen (18) if the adoption occurred before the alien turned eighteen (18). Quarters earned by a biological parent whose parental rights are lost as the result of an adoption of the child by another person are not creditable.

The Social Security Administration is the primary source of verification of qualifying quarters of work. An automated system has been developed to provide an array, by year, beginning with 1937, of all qualifying quarters of work. In some instances, there will be discrepancies between the information provided by SSA and the information provided by the alien. In other instances, the automated system will not provide verification of qualifying quarters of work. The SSA Quarters of Coverage History System Appendix also provides instructions for resolving discrepancies and for manual verification of qualifying quarters of work.

An alien may participate in the Supplemental Nutrition Assistance Program as an eligible household member for up to six (6) months while SSA works to resolve a discrepancy between the information in their system and the information provided by the alien. However, when the eligibility worker is working with the alien to obtain verification of quarters of work not appearing in the system, the normal processing standards will apply. If the household does not provide the requested information by the specified deadline, the alien will be treated as an ineligible alien as per the policy in SNAP 1621.6.

Any quarter during which the alien actually received federal means-tested public benefits is not a qualifying quarter. Quarters worked by a parent or spouse are not qualifying quarters if the parent or spouse actually received federal means-tested public benefits in that quarter. SNAP benefits are classified as federal means-tested public benefits. The following benefits have also been officially determined to be federal means-tested public benefits for the purposes of this provision: Supplemental Security Income (SSI), Medicaid, and Temporary Assistance for Needy Families (TANF). In Arkansas, the TANF Program is the Transitional Employment Assistance (TEA) Program.

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1621.7.10 Sponsored Alien Reports/Reimbursement

1621.3.3 Individuals with a Military Connection

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An alien with a military connection is one (1) of the following:

1. Any alien on active duty in any branch of the U.S. armed forces.
2. Honorably discharged veterans of the U.S. armed forces who were discharged for reasons other than alienage and who have met the minimum active-duty service requirements of Section 5303(d) of Title 38, U.S.C. (These requirements are twenty-four (24) months of continuous active service or service during the period for which the alien was called to duty.)
3. Military personnel who died in active military, naval, or air service.
4. Individuals who served before July 1, 1946, in the organized military forces of the Government of Commonwealth of the Philippines while such forces were in the service of the Armed Forces of the U.S. or in the Philippine Scouts as described in 38 U.S.C. 107.
5. The spouse or unmarried dependent child of a member of the armed forces or an honorably discharged veteran of the armed forces. This includes the surviving spouse of a deceased, honorably discharged veteran or an individual who died while on active duty if the spouse has not remarried and their current marriage meets the requirements of Section 1304 of Title 38 U.S.C.

The requirements of Section 1304 of Title 38 U.S.C. are:

- Married for at least one (1) year;
 - i. Married before the end of a fifteen-year span following the end of the period of military service in which the fatal injury was incurred or aggravated; or
 - ii. Married for any period if a child was born of the marriage or was born before the marriage.

A dependent child must be the legally adopted or biological child of an individual with a military connection and must meet at least one (1) of the following criteria:

- a. Under the age of eighteen (18);
- b. Under the age of twenty-two (22) and a full-time student; or
- c. An unmarried, disabled adult child.*

** The child must have been dependent prior to his or her eighteenth (18th) birthday. Or, if the individual with the military connection is deceased, the child must have been dependent at the time of the individual's death.*

Aliens with a military connection that meet one (1) of the citizenship requirements in SNAP 1621.1 may participate in the Supplemental Nutrition Assistance Program for an unlimited period if otherwise eligible.

Aliens who are applying to participate in the Supplemental Nutrition Assistance Program based on military service must first provide documentation that he or she meets the citizenship requirements of SNAP 1621.1.

Any SNAP-eligible alien who is currently serving in a branch of the U.S. armed forces must provide verification that he or she meets minimum active-duty service requirements. Veterans must provide documentation (using the DD Form 214) showing the discharge was classified as an honorable discharge. A surviving spouse

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of a deceased veteran or an individual who died while on active duty must provide verification that the marriage lasted at least one (1) year.

1621.3.4 Eligibility of Victims of Severe Trafficking

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1621.6 Handling the Resources and Income of Ineligible Aliens

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The resources of ineligible aliens will be counted in their entirety when the household's eligibility is determined.

Households with an ineligible alien who is undocumented (meaning, unable, or unwilling to verify immigration status), as described in SNAP 1620, must meet the gross income pretest to participate in SNAP. Determine the undocumented alien's gross countable income as instructed in SNAP 7500. If the household exceeds the income standard for their household size, deny the application. If the household meets the income standard for their household size, all but a pro rata share of the undocumented alien's income will be counted in the SNAP budget. The pro rata share would be the amount that is counted as available income for the rest of the eligible household members.

The gross income pretest does not apply to households with ineligible documented aliens. The income for ineligible aliens will be prorated across all household members including the ineligible aliens when determining eligibility.

1621.7 Sponsored Aliens

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Most immigrants who enter the U.S. must have a sponsor, meaning someone who signs an affidavit promising to provide enough financial support to maintain the immigrant at or above one hundred twenty-five percent (125%) of the Federal poverty line. (This will be one hundred percent (100%) for active-duty military.) Legal immigrants who enter the country under the provisions of immigration law other than the family-sponsored categories do not have sponsors whose income must be deemed into the SNAP budget. These categories include refugees and Asylee.

There are special procedures for some sponsored aliens under which a portion of the sponsor's income and resources are considered available to the alien. These are called deeming procedures. **The deeming requirements apply only to immigrants whose sponsor has signed a legally binding affidavit of support (Form I-864 or Form I-864A) on or after December 19, 1997.** Before December 19, 1997, affidavits of support were not legally binding meaning the sponsor could not be legally compelled to support the immigrant.

Even some of those aliens whose sponsors signed a legally binding affidavit of support are exempt from the deeming procedures. These sponsored aliens are listed below:

- Ineligible aliens
- Aliens participating in the Supplemental Nutrition Assistance Program as a member of the sponsor's household.

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- Aliens sponsored by an organization or group rather than an individual.
- Indigent aliens (see SNAP 1621.7.2 for additional information).
- Sponsored aliens who have forty (40) qualified quarters of work as per SNAP 1621.3.2.
- Aliens under eighteen (18) years of age (see SNAP 1621.3).

At each initial application and at each application for renewal afterward, the sponsored alien must provide information about his or her sponsor.

Deeming, which is the attribution of the sponsor's income and resources to the alien, lasts until the alien becomes a naturalized citizen (meaning, they can be credited with forty (40) qualifying quarters of work (SNAP 1621.3.2)) or the sponsor dies.

The eligibility worker may verify whether an immigrant has a sponsor who has signed a binding affidavit of support by submitting to INS the Document Verification Request and Supplement form (INS Form G-845 and G-845 Supplement) and requesting completion of block #7 - Affidavit of Support.

Pending receipt of this form from INS, the worker will not delay, deny, reduce, or terminate the individual's SNAP benefits if he or she is otherwise eligible.

1621.7.1 Citizenship Requirements for Sponsored Aliens

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Sponsored aliens must meet the citizenship requirements in SNAP 1621 and 1621.1. If not, the sponsored alien is ineligible to participate in the Supplemental Nutrition Assistance Program, and the deeming procedures will not apply. For sponsored aliens who meet the requirements in SNAP 1621.1 because they can be credited with forty (40) quarters of work, no deeming will apply. Sponsored aliens who meet the requirements in SNAP 1621 and SNAP 1621.1 for other reasons, must meet the deeming procedures.

Deeming will be delayed for twelve (12) calendar months for aliens who have been battered by a spouse, a parent, or another member of the household, if the battering is substantially connected to the need for benefits. This also applies to the alien child of a battered parent. (In other words, the alien had to leave the household where the battering occurred and, as a result they are in need of SNAP benefits.) After twelve (12) calendar months, deeming of the sponsor's income and resources is permanently eliminated if the battery has been substantiated in a court or by the U.S. Citizenship and Immigration Services (USCIS) and the battery has substantial connection to the need for benefits.

These provisions do not apply if the battered alien lives with the batterer. If the battered alien does live with the batterer and is a sponsored alien, the sponsor's income and resources will be deemed.

1621.7.2 Deeming the Sponsor's Income and Resources

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Deeming procedures are used to determine the amount of the sponsor's resources and income to be used in the SNAP budget of the sponsored alien's household. If the sponsored alien is found to be eligible for SNAP services and the sponsor has executed a USCIS Form I-864 or I-864A after December 19, 1997, their income and resources will be deemed to the sponsored eligible alien as unearned income and as a resource.

The deemed income must be the sponsor and sponsor's spouse's total monthly earned and unearned income

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that is being received at the time that the household containing the sponsored alien member applies or is recertified for participation, reduced by:

- A twenty percent (20%) earned income amount for the portion of the income determined as earned income of the sponsor and the sponsor's spouse; and
- An amount equal to the SNAP monthly gross income eligibility limit for a household equal in size to the sponsor, the sponsor's spouse, and any other person who is claimed or could be claimed by the sponsor or the sponsor's spouse as a dependent for Federal income tax purposes.

Any income given to the eligible sponsored alien by the sponsor or the sponsor's spouse is considered income, but only to the extent that the money exceeds the amount deemed to the eligible sponsored alien.

The resources deemed as available to the eligible sponsored alien will be the total amount of the resources of the sponsor and sponsor's spouse (that are otherwise countable for SNAP) reduced by one thousand five hundred dollars (\$1,500).

 **NOTE:** The amount to be deemed for indigent aliens differs from these procedures. See SNAP 1621.7.4.

If a sponsored alien can verify that their sponsor is the sponsor of other aliens, the State agency must divide the income and resources deemed under the provisions listed above by the number of such sponsored aliens. If the information needed to verify that the sponsor is sponsoring other aliens is not provided, all the sponsor's income and resources will be deemed to the alien. The State agency must use the same procedure to determine the amount of deemed income and resources to exclude in the case of a sponsored alien or a citizen child of a sponsored alien who is exempt from deeming as listed in SNAP 1621.7.

Deemed income and resources will continue to be used in the household's budget for the entire deeming period. The deeming period is three (3) years from the alien's date of entry into the United States.

1621.7.3 Battered Aliens

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1621.7.4 Indigent Aliens

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A sponsored alien is classified as an indigent alien if the sum of the sponsored alien's own income, the cash contributions of the sponsor and others, and the value of any in-kind assistance from the sponsor and others does not exceed the gross income limit for the alien's household size. See the current SNAP Basis of Issuance Tables for the gross income limit for the appropriate household size.

The eligibility worker must determine the amount of income and other assistance provided in the month of application. If the alien is indigent, the only amount that is to be deemed to the alien will be the amount actually provided by the sponsor to the alien. This limited deeming procedure will begin on the date of this determination and will end twelve (12) months after the date of determination. Each indigence determination will be renewable for an additional twelve-month period.

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1621.7.10 Sponsored Alien Reports/Reimbursement

The county office must notify by memorandum the Office of Program and Grant Management, Supplemental Nutrition Assistance Program (SNAP) Section, Slot S335, of each such determination, including the names of the sponsor and the sponsored non-citizen involved.

1621.7.5 Changes in Sponsors

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If the alien changes sponsors during the certification period, he or she must report the change to the county office within ten (10) days and verify the following information regarding the new sponsor:

- a. Name, address, and telephone number; and
- b. Resources and income.

Within ten (10) days of the report, the alien's eligibility will be re-determined based upon the new sponsor's income and resources. If the action adversely affects the alien, a notice of action must be issued at least ten (10) days before the effective date of action.

1621.7.6 Reporting Changes in Sponsor's Income

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The sponsored alien must report to the county office any of the following changes in the sponsor's income within ten (10) days of the day the change becomes known:

- Change in employment;
- Loss of employment; and
- Acceptance of new employment.

The deemed income must be recalculated to reflect these changes. If the reported change results in a decrease in benefits or case closure, a notice of action must be issued at least ten (10) days before the month in which the change or closure takes effect. Verification of reported changes in the sponsor's income or spouse's income is required.

1621.7.7 Verification from the Sponsor

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During the period that the alien is subject to deeming, the eligible sponsored alien is responsible for:

- Ensuring the cooperation of the sponsor.
- Providing the DHS county office with the information necessary to deem the sponsor's income and resources at the time of application and renewal.
- Providing the names of the other aliens sponsored by the alien's sponsor. (*Other identifying information may also be requested if needed. If the information needed to identify other sponsored aliens is not provided, all the sponsor's income and resources will be deemed to the alien as instructed in SNAP 1621.7.2.*)

If the sponsored alien refuses to cooperate in providing information or verification, other adult members of

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the alien's household are responsible for providing such information or verification. If the other adult members of the household also refuse to cooperate, the application will be denied.

When the sponsored alien is cooperating but cannot obtain the needed information from the sponsor, the eligibility worker must assist by attempting to obtain the needed verification from the sponsor. This may include contacting the sponsor directly to request such information.

If the eligibility worker cannot determine the sponsor's income or resources due to lack of information or verification, the sponsored alien is ineligible, and the deemed income and resources of the sponsor will not be counted in the budget. However, a pro rata share (this would be the amount that is counted as available income for the rest of the eligible household members) of the alien's income and resources will be counted in the household's SNAP budget. See SNAP 1621.6.

If later in the certification period the household presents the necessary verification, the household's SNAP budget will be recalculated adding the sponsor's deemed income and substituting the full amount of the alien's income for the prorated amount. A *Notice of Action* will be issued if the case is closed or the SNAP benefits are reduced.

These actions will be taken within ten (10) days of the day the required verification was provided by the alien. If the ineligible alien is the only household member, the application will be denied. If the same sponsor is responsible for all the household members, the application will be denied.

1621.7.8 Notices

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Approval and denial notices to households containing sponsored aliens will contain, in addition to all mandatory information, the amount of the sponsor's income and resources that has been deemed to the alien.

When an application for a household containing a sponsored alien is approved, a letter will be sent to the sponsor. Any letter drafted by the county must contain all information contained in this sample:

Sample

The household of _____ has been certified for participation in the Supplemental Nutrition Assistance Program. Eligibility in the program is based upon financial information provided by you or your spouse.

Please be advised that you or your spouse may be held liable for repayment of any overpayment of benefits resulting from incorrect information that you furnished.

1621.7.9 Incorrect Sponsor Information

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DCO will hold both the sponsor and the alien liable for incorrect information resulting in an overpayment claim, unless the sponsor can prove to be without fault, or the sponsor had good cause. If the sponsor can show good cause for the incorrect information, the claim will be filed against the alien or the alien's

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household. If the sponsor is found to be at fault, the claim will be filed against the party most likely to repay. If that cannot be determined, the eligibility worker will file a claim against both the sponsor and the alien. If fraud is suspected, the case will be referred to the Fraud Unit for investigation.

Sponsors against whom a claim has been filed are entitled to an administrative hearing. See SNAP 16310 for instructions on requesting a hearing.

1621.7.10 Sponsored Alien Reports/Reimbursement

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Upon notification that a sponsored alien has received any benefit under any means-tested public benefit program, the appropriate agency shall request reimbursement by the sponsor in the amount of such assistance. For the purpose of this provision, the Supplemental Nutrition Assistance Program is considered to be a means-tested public benefit program. In order to comply with this requirement, the county office must report, by memorandum, the name of any participating sponsored alien and the name of the alien's sponsor to the Office of Program and Grant Management, SNAP Unit, P.O. Box 1437, Slot S335, Little Rock, AR 72203-1437.

Additionally, the State must report to the Attorney General any sponsored non-citizens found to be indigent under the provisions in SNAP 1621.7.2. Therefore, if the alien has been found indigent, this information should be included in the memorandum to the Supplemental Nutrition Assistance Program (SNAP) Unit. This will allow the government to seek reimbursement from the sponsor as specified by the Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA).

3100 General Work Requirements

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SNAP applicants who do not meet an exemption from the General Work Requirements (listed below) will be registered for work at initial application and at each renewal when the SNAP application form is signed. Registration must also occur at the time of a reported change when a member of an active case loses an exemption OR when an eligible, nonexempt individual enters a household currently certified to participate in SNAP. Household members subject to the work registration requirement will be notified via a *Notification of SNAP Work Requirements* (DCO-0260).

General Work Requirements

Individuals sixteen (16) – fifty-nine (59) years of age and able to work will need to meet the General Work Requirement in order to receive SNAP benefits. The general requirements include the following:

1. Registering to work upon application and each renewal after initial registration (this occurs automatically when an individual signs the application for SNAP).
2. Participating in SNAP Employment and Training (E&T) to the extent required by the agency.
3. Accepting a bona fide offer of suitable employment at a wage not less than the higher of the applicable state or federal minimum wage.
4. Not voluntarily quitting a job or reducing work hours below thirty (30) hours per week or one hundred twenty (120) hours per month without good cause.
5. Responding to any request from an eligibility worker for information regarding employment status or availability for work.

3200 Individuals Exempt from General Work Requirements

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Eligible household members are exempt from General Work Requirements if the household member is:

1. Under sixteen (16) years of age or sixty (60) years of age or older (Individuals age sixty (60) to sixty-four (64) years of age must comply with Requirement to Work unless they meet an exemption other than age).
2. Sixteen (16) years of age or seventeen (17) years of age and living with a parent or attending a school or training program on at least a half-time basis.
3. Living with a disability.
4. Caring for a dependent child under six (6) years of age or an incapacitated person.
5. Receiving Transitional Employment Assistance (TEA).
6. Receiving or having applied for unemployment benefits.
7. Currently participating in a drug and/or alcohol treatment program.

8. Employed or self-employed on a full-time basis (thirty (30) hours or more weekly OR one hundred twenty (120) hours monthly) OR earning wages at least equal to the federal minimum wage multiplied by thirty (30) hours.
9. A student enrolled at least half-time in any recognized school, training program, or institution of higher education (See SNAP 1622).

An exemption from general work registration means certain individuals are not required to fulfil the work requirements. A full explanation of each exemption appears below in SNAP 3210-3290.

3210 Under 16 Years of Age or 60 Years of Age or Older

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Household members younger than sixteen (16) years of age or sixty (60) years of age or older are exempt from the General Work Requirements.



NOTE: If a child reaches his sixteenth (16th) birthday within a certification period, he/she will be registered for work at the next scheduled renewal unless he or she qualifies for another exemption.

3220 Certain Household Members 16 or 17 Years of Age

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A household member who is sixteen (16) or seventeen (17) years of age is exempt from the General Work Requirements if any of the following apply:

- Is living with a parent or a person who is acting as a parent
- Is attending school
- Is enrolled in an employment training program on at least a half-time basis as determined by the school or training program



NOTE: If a child who is exempt from the General Work Requirement solely because he/she is living with a parent, or person who is acting as a parent, reaches his/her eighteenth (18th) birthday within a certification period, he/she will be registered for work the month following their eighteenth (18th) birthday unless he or she qualifies for another exemption.

3230 Living with a Disability

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Household members who are unable to work because of being physically or mentally unfit for employment are exempt from the General Work Requirements.

See the Glossary definition of “Aged 60 or Older/Individuals with Disabilities.” In addition to the individuals who meet the definition of Individual Living with a Disability found in the Glossary, the following individuals may be considered individuals Living with a Disability:

- Individuals receiving services through Arkansas Rehabilitation Services (ARS).
- Individuals receiving Worker's Compensation or other short-term disability benefits.
- Individuals living with a medical condition that causes them to be physically or mentally unfit for employment as verified by a medical provider.
- Individuals receiving temporary or permanent disability benefits issued by governmental or private sources.
- Individuals with proof they receive or have a pending application for SSA/SSI.
- Veterans who are rated as 100% disabled.

When a member is not receiving disability benefits, the worker will determine if the member's disability is obvious or if verification is required.

An obvious disability is one where the worker can easily determine that the individual is incapable of gainful employment. Individuals with obvious disabilities include, but are not limited to, individuals who are:

1. Recovering from major surgery within the last six (6) weeks; or
2. Housebound or wheelchair bound

When the disability is not obvious or is questionable, verification must be provided.

Acceptable verification includes, but is not limited to:

1. A statement from a medical professional indicating the cause of disability and, if known, how long the disability is expected to last;
2. A decision by the Medical Review Team that the individual is currently living with a disability; or
3. Collateral evidence (written or oral) that the individual receives services through Arkansas Rehabilitation Services.

Documentation should appear in the case record regarding:

- a. The nature of any disability which results in an exemption;
- b. The anticipated length of the disability; and
- c. The type of verification obtained if the exemption was verified.

3240 Household Member Caring for Dependent Child Under 6 Years of Age or Incapacitated Person

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An adult household member who is responsible for the care of a dependent child under six (6) years of age or is responsible for the care of an incapacitated person of any age is exempt from the General Work Requirements. Exemptions for the care of an incapacitated person should be fully documented. Verification from a medical professional must include the name of the person providing care and a description of the incapacitating condition.

If a child reaches his/her sixth (6th) birthday within a certification period, the household member responsible

for the care of the child will be registered for work during the next scheduled renewal or case action unless the member qualifies for another exemption.

3250 Receiving Transitional Employment Assistance (TEA)

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All able-bodied adults (eighteen (18) years of age or older) who receive TEA are required to work or participate in TEA Program work activities designed to lead to work. These individuals will be exempt from the General Work Requirements due to compliance with TEA work requirements.

3260 Receiving or Having Applied for Unemployment

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Household members who are currently receiving unemployment insurance benefits are exempt from the General Work Requirements. A household member who has applied for, but not yet begun to receive, unemployment insurance benefits is also exempt if he or she was required to register for work with the state's workforce agency, Arkansas Workforce Connections (AWC), as a part of the unemployment insurance application process.

An applicant for unemployment would not be required by AWC to register for work when:

- He or she is job attached and laid off for less than eight (8) weeks; or
- He or she is a member of a trade union that assists members in finding employment.

 **NOTE:** Verification of whether the individual was registered through AWC may be obtained from Arkansas Workforce Connections. The worker will not contact AWC to determine if a household member is registered for work through AWC. This determination will be based upon correspondence (letters, forms, system interfaces, etc.) from AWC that is provided to the household member, or any other information available. In situations where there is no available information, the registrant's statement will be used. The case record will be documented accordingly.

If an individual who is exempt from General Work Requirements solely due to receipt of unemployment benefits fails or refuses to comply with AWC work requirements, a sanction may be imposed (see SNAP 3414).

3270 Participating in a Drug and/or Alcohol Treatment Program

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Household members who are currently participating in a drug and/or alcohol treatment and rehabilitation program on an in-patient or out-patient basis are exempt from the General Work Requirements.

3280 Employed Persons and Self-Employed Persons

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Household members who are employed and either working a minimum of thirty (30) hours weekly (one hundred twenty (120) hours monthly) or receiving weekly earnings at least equal to the federal minimum wage multiplied by thirty (30) are exempt from General Work Requirements.

This exemption includes any migrant or seasonal farm worker who is under a contract or similar agreement with an employer or crew chief to begin employment within thirty (30) days. A migrant or seasonal farm worker who does not have such an agreement and is not otherwise exempt will be registered for work.

The number of hours of employment may be verified from:

1. Pay stubs
2. Employers; or
3. The current amount of verified income divided by thirty (30).

A household member solely engaged in a hobby, volunteer work or another activity for which little or no payment is received is not considered gainfully employed regardless of the length of time spent in such activity.

A self-employed household member who works a minimum of thirty (30) hours per week (one hundred twenty 120 hours monthly) or who receives weekly earnings at least equal to the federal minimum wage, multiplied by thirty (30) hours is exempt from the General Work Requirements. This exemption may be established through verification of the amount of earnings if the earnings are at least equal to the federal minimum wage, multiplied by thirty (30) hours per week.

If the income is not sufficient to conclude full-time employment, the household must cooperate with the worker in verifying hours worked. For example, some farmers work more than forty (40) hours per week yet make no profit.

3290 Students

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A student eighteen (18) years of age or older who is enrolled at least half-time as defined by the school in a high school or in a GED program is exempt from the General Work Requirements. If a student is enrolled in an institution of post-secondary education at least half-time as defined by the school in SNAP 1622 and the student is eligible to participate as per 1622.3, the student is exempt from the General Work Requirements. The exemption continues to apply through periods of school recess but is lost when the student graduates, drops out, is expelled, or otherwise terminates enrollment.

3300 Individuals to be Registered for Work

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Section deleted 07/01/2026

3310 Work Registration at Case Actions

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Section deleted 07/01/2026

3310.1 Work Registration at Initial and/or Recertification Applications

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Section deleted 07/01/2026

3310.2 General Work Registration at Reported Change

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At the time of a reported change, General Work Registration must be completed for all nonexempt members who enter the household or for members who lose an exemption as a result of a reported change which is required to be reported per SNAP 11200.

A Notification of SNAP Work Requirements (DCO-0260) must be sent when:

1. A nonexempt member enters the household; or
2. An eligible household member loses an exemption due to a reported change; or
3. A nonexempt member turned sixteen (16) years of age since the last case action.

If the worker cannot determine based solely on information available on the change report or in the case record that the member must be work registered, the household will be contacted.

If the needed information cannot be obtained by telephone, the household will be issued a Request for Contact (DCO-0191C), following Unclear Information policy SNAP 12400.

3310.3 Work Registration at Periodic Report and Annual Review

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Section deleted 07/01/2026

3320 General Work Requirement Exemption Priority

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General work registration exemptions will be assigned in the following order:

1. Age (**NOTE:** If an individual is below sixty (60) years of age but is considered disabled, this disability will be considered ahead of age.)
2. Physically or mentally unfit for employment
3. Care of a dependent child under six (6) years of age or an incapacitated person
4. Receiving or applied for unemployment compensation
5. Participating in a drug and alcohol treatment program
6. Employed or self-employed full-time (thirty (30) hours or more weekly, (one hundred twenty (120) hours monthly) or earning the federal minimum wage multiplied by thirty (30) hours per week
7. A student enrolled at least half-time in any recognized school, training program, or institution

of higher education. The applicant must meet the student definition per SNAP 3290

8. Receiving Transitional Employment Assistance (TEA)

EXAMPLE: A household member is sixty-six (66) years of age and/or living with a disability. The General Work Requirement exemption assigned is for age.

EXAMPLE: A household member who receives TEA has a dependent child two (2) years of age. The General Work Requirement exemption assigned is for dependent care.

EXAMPLE: A household member is fifty-six (56) years of age and/or living with a disability. The General Work Requirement exemption assigned is for disability.

3400 Mandatory Employment & Training (E&T)

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NOTE: This section was previously titled *Compliance with General Work Requirements*.

The Food and Nutrition Act of 2008 requires all states to operate an Employment and Training (E&T) Program to gain skills, training, work, or experience that will increase their ability to obtain regular employment and meet State or local workforce needs. In Arkansas, it is mandatory that any SNAP recipient who is not exempt from the General Work Requirements participate in Employment and Training to be eligible for SNAP benefits. Individuals subject to the General Work Requirements who do not qualify for an exemption must participate in Mandatory E&T. This requirement holds true even for those who meet an exemption from the Requirement to Work (RTW) under SNAP 3502.

SNAP participants who are subject to the General Work Requirements and who fail or refuse to participate in the SNAP E&T Program may be disqualified. See SNAP 3401 regarding non-compliance with the General Work Requirements.

The State agency is responsible for screening each individual to determine if it is appropriate to refer him or her to the E&T program. If the State agency determines the individual is required to participate in an E&T program, the State agency must provide the participant with a written notice and a comprehensive oral explanation. A *Notification of SNAP Work Requirements* (DCO-0260) will be sent to the household to serve as the individual's written explanation and to explain the E&T Program. The written explanation does not relieve the agency of the requirement to provide an oral explanation at interview.

The State agency must refer participants to E&T, and all participants must receive both case management services and be enrolled in at least one (1) E&T component while participating in the program. However, clients may participate in more than one (1) component (see Appendix F). The State agency must determine the specific order in which a participant will receive program elements such as orientation, assessment, case management and various E&T components. The State agency must also provide good cause for mandatory E&T participants if there is not an available and appropriate E&T opening. This form of good cause is only for mandatory E&T and will not prevent a time-limited participant from accruing a countable month if they did not participate in another qualifying activity. See SNAP 3500. Good cause information can be found in SNAP 3411.

Individuals subject to mandatory E&T participation who do not meet good cause criteria will be systematically referred to the E&T Program, creating a task in SNAP Works, where E&T participation is managed by both E&T Providers and the SNAP E&T Unit. Referrals will be made at application (initial and renewal), reinstatement, and any reported change where a household member has become subject to the General Work Requirement.

Eligibility staff must ensure that the proper characteristics are assigned to the individual when eligibility is determined and before authorization to allow for correct referral. See Appendix CC for an explanation of work participation characteristics.

 **NOTE:** This code will also notify SNAP Works of changes in SNAP eligibility. E&T Providers will not be reimbursed for costs incurred by an E&T Program participant who is no longer participating in the Supplemental Nutrition Assistance Program. This information will be sent to SNAP Works to notify

the E&T Provider that a participant's SNAP case has closed. A closure task will then be generated in SNAP Works.

How can someone comply with Mandatory E&T?

1. Work with a SNAP E&T provider at orientation to find appropriate employment, education, or training activity opportunities.
2. Complete the activities every month.
3. Volunteer an average of twenty (20) hours per week at non-profit organizations, government offices, and churches. You may volunteer with more than one (1) organization, if needed.

Does every individual have to comply with Mandatory E&T?

- No, a participant will not have to comply with Mandatory E&T if they are:
 - Temporarily laid off from employment (6 months or less)
 - Lives more than thirty-five (35) miles from a job search or training center (this includes DHS county offices when virtual services are available)
 - A domestic violence survivor as determined by good cause. Good cause documentation can include, but are not limited to, police reports, court papers, medical records, other written documentation, and photos.

Any participant who is subject to Mandatory E&T is eligible to have costs of participation reimbursed. See SNAP 3630-3640.

3401 Failure to Comply with General Work Requirements

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Failure to comply with General Work Requirements include:

- Refusal, without good cause, to accept an offer of employment at a site or plant that is not subject to a strike or lockout at the time of the refusal at a wage not less than the applicable federal or state minimum wage
- Refusal, without good cause, to provide sufficient information to allow a determination of employment status or job availability
- Refusal, without good cause, to participate in and meet the requirements of assigned Employment and Training (E&T) program
- Voluntarily and without good cause, reducing one's work effort to less than thirty (30) hours per week OR one hundred twenty (120) hours per month
- Voluntarily quitting a job without good cause within thirty (30) days prior to the date of application or at any time while the individual who quit was participating in the Supplemental Nutrition Assistance Program

3401.1 Voluntary Quit

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- A voluntary quit is defined as the intentional departure of an employee from a suitable job without good cause. The voluntary quit provisions do not apply to changes in employment resulting from:
- Resignations recognized by the employer as retirement; or
- Termination of a self-employment enterprise; or
- Resigning at the demand of the employer

3401.2 Verification of Voluntary Quit

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When a loss of earned income is reported, the eligibility worker must verify the last date of employment and the last month's pay. Information provided by the household about the reasons for leaving employment must be verified if questionable.

The household has the primary responsibility for providing verification. However, in situations where it is difficult or impossible for the household to obtain the needed verification in a timely manner, the worker will help the household. Acceptable sources of verification include the previous employer, employee associations, union representatives, grievance committees, or other organizations that represent employees who are aggrieved.

The worker may substitute collateral contacts as described in the Glossary under "Collateral Contacts" when documentary evidence cannot be obtained.

The household will not be denied access to the Program when the requested verification cannot be obtained due to the circumstances surrounding the quit. Examples of such situations are:

1. Resignation from employment because of discriminatory practices or sexual harassment
2. Resignation due to unreasonable demands by an employer; or
3. Being unable to locate the employer

The case record will be thoroughly documented to reflect all efforts by the household and the eligibility worker to obtain the needed verification.

3401.3 Special Instructions for Mandatory E&T Non-Compliance

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When an individual is subject to Mandatory Employment and Training (E&T) fails or refuses to meet the Mandatory E&T requirements (specified in SNAP 3400) without having a good cause to do so, the individual will be disqualified from receiving SNAP benefits. Failure or refusal to cooperate can result from notification from the E&T provider or from the client themselves. When notified that one (1) or all household members must participate in Mandatory E&T to satisfy the General Work Requirements, if the household member(s) declare they do not wish to participate, these members will be considered to have refused to cooperate with

the Mandatory E&T requirements.

If this refusal occurs at initial or renewal application, A *Notification of SNAP Work Requirements* (DCO-0260) will be issued to the household, detailing the work requirement for the household members, and those who refused will be immediately sanctioned. The sanctioned members will be considered ineligible members in the SNAP budget, and their income, resources, and expenses will be counted in full, see SNAP 1623.2. If the household consists of only sanctioned person(s), the application will be denied immediately and DCO-0260 will be issued with Notice of Action. If the refusal occurs as a result of a change, the sanctioned member(s) will be issued a DCO-0260 and immediately sanctioned. If the sanction results in case closure or in a reduction of benefits, the household will be given a ten (10) day notice via DCO-0001 Notice of Action prior to benefit reduction or case closure. See SNAP 3410-3412 for more information on applying sanctions.

The only exception to this rule is when the failure to meet program requirements results from a provider determination (see SNAP 3622 for more information).

3410 Sanctions

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The following sanctions will apply to individuals who fail to comply with General Work Requirements including non-compliance with mandatory E&T, voluntary quits, and intentional work reductions:

First Violation: The individual who failed to comply without good cause will be disqualified from receiving SNAP benefits for one (1) month or until he or she becomes exempt from the General Work Requirements.

Second Violation: The individual who failed to comply without good cause will be disqualified for six (6) months or until he or she becomes exempt from the General Work Requirements.

Third Violation: The individual who failed to comply without good cause will be disqualified for twelve (12) months or until he or she becomes exempt from the General Work Requirements.

The household's benefits may not increase as the result of a disqualification for failure to comply with General Work Requirements. See SNAP 1623.2 for instructions on calculating a budget when there is a disqualified member. If all members are disqualified or if after sanctions are applied the household's income exceeds the maximum allowed for the eligible household members, the case will close.

3411 Good Cause

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It is not possible to enumerate each individual situation that should or should not be considered good cause for failure to comply with General Work Requirements. For this reason, the eligibility worker should consider all facts and circumstances including information provided by both the household and the employer when determining good cause. All facts and circumstances, including information submitted by the individual involved and the employer, will be considered in determining good cause.

Good cause includes circumstances beyond the household member's control. Examples of good cause include but are not limited to:

- A household emergency (this could include house fire, disaster or hospitalization of a household member that requires the individual to care for them. These are only examples and not an exhaustive list.)
- Illness
- Lack of transportation
- Lack of adequate childcare for children between six (6) years of age and twelve (12) years of age
- When agency determines that there is not an appropriate and available opening with the E&T program to accommodate the individual

Under no circumstances will an individual subject to the General Work Requirement be required to accept or be penalized for failure to accept or continue employment that is determined unsuitable. The case record must contain documentation of the reason the employment was determined unsuitable.

Employment will be considered unsuitable if:

1. The wages are less than the highest of:
 - The applicable Federal minimum wage; or
 - The applicable State minimum wage; or
 - Eighty percent (80%) of the Federal minimum wage if neither the Federal nor State minimum wage is applicable
2. The employment offered is on a piece-rate basis and the hourly yield the employee can reasonably be expected to earn is less than the applicable hourly wages specified above
3. The individual, either to be hired or to continue employment, is required to join, resign from, or refrain from joining any legitimate labor organization. This applies to situations where the prospective employer specifically prohibits membership, and to situations where the individual will not be able to retain his union membership if a nonunion job is accepted. A union member can be required to accept full-time, nonunion employment if he or she will not be dropped from the union rolls as a result or if he or she voluntarily drops his or her union membership.
4. The employment offer is located at a site subject to a strike or a lockout at the time of the offer. This does not apply when the strike has been enjoined under S208 of the Labor Management Relations Act (29 U.S.C. 78, commonly known as the Taft Hartly Act), or when an injunction has been issued under Section 10 of the Railway Labor Act (45 U.S.C. 160).

Any other employment offered to a particular individual will be considered suitable unless an individual can demonstrate, or the local office otherwise becomes aware that:

- The degree of risk to health and safety is unreasonable
- The individual is physically or mentally incapacitated (as established by documentary medical evidence or other documented and reliable information) to perform the employment
- Employment offered within the first thirty (30) days of registration is not in the individual's major field of experience

- The working hours or nature of employment interferes with the member's religious observances, convictions, or beliefs – for example a Sabbatarian could refuse to work on the Sabbath; or
- The distance between the individual's residence and the place of employment is unreasonable considering the expected wage and the time and cost of commuting. In any case, employment will not be considered suitable if daily commuting time exceeds two hours per day not including the transportation of a child to and from a childcare facility. Employment is also considered unsuitable if the distance from the individual's residence is not within reasonable walking distance and neither public nor private transportation is available.

When evaluating a voluntary quit, good cause may also be:

1. Acceptance of any bona fide offer of employment that subsequently fails to materialize
2. Resignation of a household member when another household member accepts an offer of employment resulting in a need for the household to relocate
3. Enrollment at least halftime in any recognized school, training program, or institution of higher education
4. Any resignation recognized by the employer as retirement
5. Discrimination by the employer based on age, race, sex, color, handicap, religious beliefs, national origin, or political beliefs
6. Work demands or conditions that render continued employment unreasonable such as, but not limited to, working without being paid on schedule
7. Employment that becomes unsuitable, as defined above, after the acceptance of such employment
8. Leaving a job in connection with a pattern of employment where a worker frequently moves from one employer to another – for example migrant farm labor or construction work

There will be situations not specifically mentioned where the worker feels that there was good cause for a voluntary quit. In such situations the county office will seek policy interpretation through the normal chain of command. All such situations will be documented in the case record.

3412 Applying Sanctions

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As soon as the agency learns of an individual's non-compliance, steps must be taken to determine if the individual is still subject to General Work Requirements and if good cause exists for the non-compliance. See SNAP 3411 for more information on good cause. If good cause exists, document the good cause in the case record and take no additional action. If it is determined that the non-compliance was without good cause, follow instructions in SNAP 3420 and 3430.

3413 Applying Sanctions at Voluntary Quit or Reduction of Work Hours

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When a loss of earned income is reported at initial application, renewal, or as a reported change the worker must determine if sanctions are to be applied. Sanctions may be applicable when a household member voluntarily quits a job within thirty (30) days of the date of application or at any time while the individual is participating in the program.



NOTE: A federal, state or local government employee dismissed from a job as the result of a strike is considered to have voluntarily quit the job without good cause. Sanctions may be applicable when a household member voluntarily reduces his or her work effort to less than thirty (30) hours per week.

Sanctions are also applicable when a voluntary quit or voluntary reduction in work hours occurs but is not reported in a timely fashion. This includes, but is not limited to the following instances:

- A voluntary quit or reduction in work hours occurs thirty (30) days or less before the date of application, is not reported at application and is discovered after application approval
- A voluntary quit or reduction in work hours occurs after the date of the initial application interview and is reported after the approval notice is issued
- A voluntary quit or reduction in work hours occurs while the household is participating but is not reported timely

The following steps must be completed to determine if a voluntary quit has occurred and if a sanction should be applied.

Step 1: Determine if the employment involved thirty (30) hours or more per week or provided weekly earnings are equivalent to the Federal minimum wage multiplied by thirty (30) hours. If yes, go to step 2. If no, the household will not be sanctioned.

Step 2: Determine if the member who quit is between sixteen (16) years of age and sixty (60) years of age. If this member is less than sixteen (16) years of age or sixty (60) years of age or older, a sanction will not be applied. If this member is between sixteen (16) years of age and sixty (60) years of age, go to step 3.

Step 3: Determine if the member who quit or reduced work hours is subject to the General Work Requirements (see SNAP 3200-3290). If this member was exempt from the requirements at the time the quit occurred (excluding the exemption for employment) or is presently exempt, no sanction will be applied. If the member who quit is subject to the General Work Requirements, go to step 4.

Step 4: Determine if the quit or reduction in hours was for good cause (see SNAP 3411). If yes, the member will not be sanctioned. If no, the member will be sanctioned. See SNAP 3420 for the applicable sanction.

The sanction will apply only to the individual or individuals who failed or refused to comply with the General Work Requirement. The system will only close the household's SNAP case if all individuals are sanctioned. To

sanction an individual household member, the system must recalculate the household's budget.

3414 Applying Sanctions for Failure to Comply with Arkansas Workforce Connections (AWC)

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 **NOTE:** This policy will not apply in situations where AWC benefits are denied or suspended because a household member's employment was terminated by the employer. This policy will apply when a household member has failed or refused to meet an AWC requirement such as, but not limited to, failure to complete the mandatory job search.

When a worker becomes aware that entitlement to unemployment benefits have been denied or terminated or that Transitional Employment Assistance has been reduced or terminated, the following steps will be taken:

Step 1: Determine if the member was exempt solely due to receipt of unemployment benefits or Transitional Employment Assistance. If the member is otherwise exempt from the General Work Requirements, no action will be taken. (For example, a member responsible for the care of a dependent child four (4) years of age fails to comply with a Transitional Employment Assistance work requirement. Since the member is exempt under the dependent care provisions, no sanction will be applied to the SNAP household.) If not, go to step 2.

Step 2: If the member was exempt solely due to receipt of unemployment benefits or Transitional Employment Assistance, determine if the individual had good cause for failure to comply with the General Work Requirement. (See SNAP 3411 for an explanation of good cause.) If the member had good cause for failure to comply, no action will be taken. If not, go to Step 3.

Step 3: If the member did not have good cause, sanction the member. See SNAP 1623.2

3420 When to Impose a Sanction

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At application, the sanction will be imposed effective with the month of application regardless of whether the application is approved or denied. For a participating household, a Notice of Action (DCO-0001) must be issued to the household at least ten (10) days prior to the imposition of a sanction (see SNAP 3430), giving the household adequate notice of an adverse action. Unless the household is in the last month of certification and has not been recertified, the sanction will be imposed beginning the month following the month in which the ten (10) day notice period expires.

EXAMPLE: A household is certified from July through December. On August 16th, the eligibility worker becomes aware of a voluntary quit. On August 23rd, the worker authorizes a budget with a sanction for the household member who violated the General Work Requirement. Ten (10) days from this authorization date is September 2nd. The system will begin the disqualification period October, as October is the month following the month in which the ten (10) day notice period expired. If the household is in the last month of certification and an application for renewal has not been approved, the sanction will be imposed beginning the first month of the certification period. This is true even when the household has not submitted an

application for renewal.

EXAMPLE: A household is certified for July and August. On August 28th, the worker becomes aware of a voluntary quit. On August 31st, the worker approves the household's application for renewal but disqualifies the noncompliant member for the months of September, October and November. A Notice of Action (DCO-0001) is used so the household may be advised of the disqualification.

A *Notice of Action* (DCO-0001) must be sent when the agency becomes aware of the noncompliance with SNAP work requirements, even if the disqualification begins after the certification period has ended and the household has not renewed their benefits.

3430 Notices for General Work Requirement Non-Compliance

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A notice must be issued to the household within ten (10) days of establishing that any participating household member failed or refused to comply with a General Work Requirement without good cause. The notice must be sent at least ten (10) days before the effective date of the imposition of the sanction unless the household is in the last month of certification. If the household is in the last month of certification, the timing of the notice will depend on the case's status.

If the household has submitted an application for renewal that has already been approved, a Notice of Action (DCO-0001) must be issued to the household at least ten (10) days prior to the imposition of a sanction, giving the household adequate notice of an adverse action. If the household has submitted an application for renewal that has not yet been approved, the sanction will be imposed before action is taken on the renewal and a *Notice of Action* (DCO-0001) will be issued to explain the effects of the sanction.

Even if no renewal has been submitted, a *Notice of Action* (DCO-0001) must be issued to the household to explain the sanction period and the effects of the sanction

If the household is composed entirely of noncompliant members, the notice will specify:

1. That the entire household is being sanctioned and the household's case is being closed
2. Why the household is being sanctioned
3. When the sanction will be imposed
4. The months to be included in the sanction
5. Any action which the household may take to avoid the sanction (See SNAP 3411); and
6. The right to a fair hearing

If only the individual who failed to comply is to be sanctioned, the notice will specify:

1. That only one member is being sanctioned
2. Why this member is being sanctioned
3. How this sanction will affect the household's SNAP benefit amount (See SNAP 1623.2)
4. When the sanction will be imposed

5. The months to be included in the sanction
6. Any actions which the member may take to avoid the sanction; and
7. The right to a fair hearing

3440 Avoiding or Ending a Sanction

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A disqualification due to failure to comply with a General Work Requirement may be avoided or ended if the individual becomes exempt from work registration.

3441 Ending a Sanction When Household Composition Changes

SNAP Manual 07/01/2026

See SNAP 3410 for an explanation of the sanctions imposed for failure to comply with General Work Requirements.

If a sanctioned member leaves a household, the member's income and/or resources will be dropped from the original household's SNAP budget. The member who refused or failed to comply continues to be sanctioned. If he or she joins another household, he or she will continue to be sanctioned for any months remaining in the original sanction period. See SNAP 1623.2 for instructions on handling the income and resources of ineligible household members.

3442 Reestablishing Eligibility

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After the sanction has ended, eligibility for a one (1) person household may be re-established with a new application. By reporting a change with an open SNAP case, a sanctioned household member may be permitted to resume participation effective the month following the last month of the sanction if otherwise eligible. A sanctioned individual may be permitted to resume participation during the sanctioned period (if otherwise eligible) by becoming exempt from the General Work Requirements.

3500 The SNAP Requirement to Work (RTW)

SNAP Manual 07/01/2026

SNAP participants who do not meet an exemption to the General Work Requirements are considered to be subject to the SNAP Requirement to Work (RTW) and are referred to as Able-Bodied Adults Without Dependents (ABAWDs). ABAWDs must meet all the general SNAP work and eligibility requirements as well as additional requirements to continue receiving SNAP benefits beyond a three (3) month time limit.



NOTE: The Requirement to Work is an additional work requirement that is separate from the General Work Requirements, which include the following: registering for work, participating in SNAP E&T to the extent assigned, accepting suitable offers of employment, and avoiding voluntarily quitting a job or reducing work hours below thirty (30) hours per week without good cause. See SNAP 3412 for applying sanctions if a SNAP participant fails to comply with these requirements.

Unless exempt from the RTW, discussed in SNAP 3502, Able Bodied Adults Without Dependents (ABAWDs), or able-bodied adults, are ineligible to receive SNAP benefits if, during a designated three-year period, they received SNAP benefits for at least three (3) months (consecutively or otherwise) while they did not:

- Work at least twenty (20) hours per week (or an average of eighty (80) hours a month). Work can be for pay, for goods or services (for something other than money), unpaid, or as a volunteer; or
- Participate in and comply with a Workforce Innovation and Opportunities Act (WIOA) Program (see Note 1 below); or
- Participate in a SNAP Employment and Training (E&T) Program twenty (20) hours per week (or an average of eighty (80) hours a month unless the individual is assigned to Work Experience (see Note 2 below); Participate in an Employment and Training Program for Veterans that is operated by Department of Labor or Department of Veterans Affairs; or
- Participate in an Employment and Training Program, other than a job search or job search training program, operated or supervised by the State or political subdivision of the State that meets standards approved by the Governor. The program may contain job search or job search training as a subsidiary component as long as such component is less than half the requirement; or
- Participate at least half-time (as defined by the program) in a recognized refugee training program approved, funded, or operated by the Office of Refugee Resettlement (ORR) under section 236 of the Trade Adjustment Act of 1974

 **NOTE 1:** WIOA is a qualifying component for an Able-Bodied Adult, therefore if the individual is participating in any WIOA component, they are considered to meet the RTW.

 **NOTE 2:** For E&T Work Experience Programs, the household's obligation of work hours required to meet the RTW will be calculated by dividing the household's authorized monthly SNAP benefit amount (before recoupment) by the current state or federal minimum wage, whichever is greater. Fractions are rounded down.

An individual who is self-employed and works at this enterprise for an average of eighty (80) hours per month or more, meets the RTW. There is no requirement that the self-employment enterprise show a profit. The decision of whether an individual is self-employed will be made on a case-by-case basis. See SNAP 5600 for general explanation of what a self-employment enterprise is. When an individual declares that they are self-employed but maintains no records of their income and expense, the eligibility worker may ask for some type of collateral verification. These verifications could include collateral contact, *Odd Job Income/Expense Record* (DCO-0096) or Schedule C. For example, if an individual claims to be self-employed collecting and selling cans, the household may be asked to furnish a collateral contact from the company or person who buys the cans.

The definition for working to meet RTW means:

- Work in exchange for money
- Work in exchange for goods or services
- Unpaid work or

- Any combination of the above.

An individual who receives in-kind benefits for work is considered to be compensated.

EXAMPLE: An individual works twenty (20) hours each week in a coin laundry. In return, the individual is allowed to live in an apartment above the laundry free of charge. This person meets RTW.

Anyone who is currently employed by a company or an individual and who works at least eighty (80) hours per month has complied with RTW. For individuals subject to the time limit who are fulfilling the work requirement by working, by combining work and participation in a work program, or by participating in a work program that is not operated or supervised by the State, the individual's work hours must be verified. The eligibility worker must also verify the number of countable months that were used in another state if there is evidence that the individual participated in SNAP in the other state. The State Agency may use information received from the other state as verified information.

3501 Waivers

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The State of Arkansas is currently not under a waiver and RTW applies as of January 1, 2016. The U.S. Department of Agriculture, Food and Nutrition Service, may grant permission for states to waive the SNAP (RTW) in certain areas where the current unemployment rate is higher than ten percent (10%).

3502 RTW Exemptions

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The following individuals are exempt from the RTW:

1. Anyone seventeen (17) years of age or younger
2. Anyone sixty-five (65) years of age or older
3. Anyone Medically certified as physically or mentally incapacitated for employment. This includes any individual who:
 - Provides a statement from a physician, licensed psychologist or other licensed healthcare provider indicating the cause of the disability and anticipated duration of the disability. A statement that does not provide the anticipated duration of disability may be accepted but will be valid for no longer than six (6) months.
 - The incapacitation may be obvious and would not require verification or certification.
 - Is a veteran rated disabled at less than 100%.
4. An individual has responsibility for dependent child under fourteen (14) years of age who resides in the SNAP household. The able-bodied adult must be responsible for or have parental control of this dependent child to receive this exception.
5. Anyone who is pregnant. This exemption covers all trimesters of pregnancy.
6. An Indian or an Urban Indian (as per PL 119-21 signed into law July 4, 2025. Acceptable verifications include Tribal Enrollment/Membership card, Certificate of Degree of Indian Blood

(CDIB), Letter from the US Department of Health and Human Services, Letter from Tribe, or other acceptable information.

- Indian is defined as any person who is a member of an Indian tribe.
 - An Indian Tribe is defined as any Indian tribe, band, nation, or other organized group or community, including any Alaska Native village or group or regional or village corporation as defined in or established pursuant to the Alaska Native Claims Settlement Act (85 Stat. 688) [43 U.S.C. 1601 et seq.], which is recognized as eligible for the special programs and services provided by the United States to Indians because of their status as Indians.
 - Urban Indian is defined as any individual who resides in an urban center and who meets one (1) or more of these four (4) criteria:
 - Regardless of whether they live on or near a reservation, is a member of a tribe, band, or other organized group of Indians, including those tribes, bands or groups terminated since 1940 and those recognized now or in the future by the State in which they reside, or who is a descendant, in the first (1st) or second (2nd) degree, of any such member; or
 - Is an Eskimo or Aleut or other Alaska Native; or
 - Is considered by the Secretary of the Interior to be an Indian for any purpose; or
 - Is determined to be an Indian under regulations promulgated by the Secretary of Health and Human Services
7. A California Indian is an individual who is (as per PL 119-21 signed into law July 4, 2025.)
- A member of a federally recognized Indian Tribe
 - Are a descendant of an Indian who was residing in California on June 1, 1852, if such descendant;
 - Is a member of the Indian community served by a local program of the Indian Health Service; and
 - Is regarded as an Indian by the community in which such descendant lives
 - Are an Indian who holds trust interest in public domain, national forest, or reservation allotments in California; or
 - Are an Indian of California who is listed on the plans for distribution of the assets of rancherias and reservations located within the State of California under the Act of August 18, 1958, and any descendant of such an Indian.
8. Is otherwise exempt from work registration as outlined at SNAP 3200. Individuals sixty (60) to sixty-four (64) years of age must qualify for an exemption that is not based on age to be exempt from the Requirement to Work.

3502.1 Discretionary Exemptions

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FNS provides for each State Agency an allotted number of discretionary exemptions equal to a percentage of the State's SNAP participation caseload. The State Agency may use these exemptions to extend SNAP eligibility to individuals who are no longer eligible to participate in SNAP due to the three (3) month Able-Bodied Adult RTW time limit. Discretionary exemptions allow certain individuals an opportunity to establish or to re-establish themselves into the community, and may be assigned to the following groups:

- Individuals who are currently in Foster Care
- Individuals who are in Domestic Violence Shelters.

Individuals who are currently in Foster Care or Domestic Violence Shelters may be exempt from the RTW until they exit Foster Care or the Domestic Violence Shelter.

Discretionary exemptions are granted to one able-bodied adult for one (1) month. The decision to exempt an individual from RTW must be documented in the case record.

3502.3 Assignment of Discretionary Exemptions

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Section deleted 07/01/2026 and merged with SNAP 3502.1

3503 Able-Bodied Adult Work Requirements

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Section deleted 07/01/2026 and merged with SNAP 3500

3510 Establishing the RTW Three-Year Compliance Period

SNAP Manual 07/01/2026

Section deleted 07/01/2026 and moved to SNAP 3511

3511 Three (3)-Year Compliance Period

SNAP Manual 07/01/2026

The three (3)-year RTW compliance period runs continuously regardless of whether the individual participates in the Supplemental Nutrition Assistance Program.

The state has elected to use a fixed time period of three (3) years. The three (3)-year period started on January 1, 2016, and runs continuously for three (3) years even if there are breaks in the individual's SNAP participation. At the end of the three (3)-year period, the count is reset, and a new compliance period will begin.

EXAMPLE 1: An individual applies for SNAP on January 4, 2025. Their three (3)-year compliance period began on January 1, 2025, and runs continuously through December 31, 2027 (three years). A new three (3)-year compliance period will begin on January 1, 2028.

EXAMPLE 2: An individual applies for SNAP on May 18, 2025. Their three (3)-year compliance period began on January 1, 2025, and runs continuously through December 31, 2027 (three years). A new three (3)-year compliance period will begin on January 1, 2028.

3512 Countable Months

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A countable month is any month in which an Able-Bodied Adult Without Dependents (ABAWDs) receives a full month of SNAP benefits. Any months that a household received partial month's benefits, including prorated and retroactive benefits unless the retroactive months are not prorated, are not included in the three (3)-month requirement. State Agencies must track countable months over the three (3)-year period even if there are breaks in an able-bodied adult's participation.

EXAMPLE: John applies for SNAP on January 2, 2025. He received SNAP benefits for January. Since January was a partial month, it will not be counted as a participating month for RTW purposes. The

three (3)-month count for John begins February 2025 and ends April 2025.

Beginning May 2025, John is no longer eligible for SNAP benefits since he has received three (3) full months of benefits without meeting an exemption. He will remain ineligible until December 31, 2027, unless he later meets an exemption or can reestablish eligibility by meeting the RTW.

The following chart provides an explanation of John's RTW Status:

	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
2025	P	M1	M2	M3	I	I	I	I	I	I	I	I
2026	I	I	I	I	I	I	I	I	I	I	I	I
2027	I	I	I	I	I	I	I	I	I	I	I	I

W = Working at least 20 hours; **ET** = Participating in qualifying work activity; B1, B2, B3 = Bonus months; **M1, M2, M3** = Countable month; **N** = Not participating in SNAP; **I** = Ineligible for SNAP because ABAWD does not meet work requirements and has used countable months. **P**=Partial month of benefits. **EX** = Exemptions.

EXAMPLE: It's now July 2025 and John reapplies for SNAP benefits. We discover that he has a temporary disability due to a surgery he had earlier this month. His doctor provided a statement that he will be able to return to work on October 1, 2025.

Since John now meets an exemption due to a disability, he can receive SNAP benefits for July-August-September-October 2025 (he will become ineligible the month after it has been established that the disability has ended). John will not be eligible for SNAP benefits again until January 2028 because he has already exhausted his three (3) months out of thirty-six (36) months based on the date established back in January 2025. He can only be eligible before January 2028 if he meets another RTW exemption or complies with the RTW.

	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
2025	P	M1	M2	M3	I	I	I	I	I	I	I	I
2026	I	I	I	I	I	I	EX	EX	EX	EX	I	I
2027	I	I	I	I	I	I	I	I	I	I	I	I

W = Working at least 20 hours; **ET** = Participating in qualifying work activity; B1, B2, B3 = Bonus months; **M1, M2, M3** = Countable month; **N** = Not participating in SNAP; **I** = Ineligible for SNAP because ABAWD does not meet work requirements and has used countable months.

P=Partial month of benefits. **EX** = Exemptions.

For individuals who have been living in another state, the RTW compliance period will be the same as if they were residing in the State of Arkansas. Verification of their participation in SNAP in the state in which they

resided is required prior to the individual's certification to receive SNAP benefits in Arkansas.

EXAMPLE 1: Sally lived in Hawaii until June 13, 2025, then she moved to Arkansas and applied for SNAP. She received SNAP benefits in Hawaii for the months of January, February and March 2025 and was subject to the RTW in Hawaii and met no exemptions. Since Sally has already received three (3) months of benefits from another state while not meeting an exemption, she is not eligible for SNAP in Arkansas until she meets an RTW exemption, complies with RTW, or a new three (3)-year compliance period begins.

EXAMPLE 2: Bob lived in Arkansas January through June 2025 and received SNAP benefits. He was subject to the RTW and had a three (3)-year compliance period established beginning January 1, 2025. He received three (3) countable months for January through March 2025. Bob moved out of the state and returned in July 2026. He applied for SNAP benefits and does not meet the RTW or any exemption. Since Bob has already received three (3) months in the three (3)-year compliance period, he will not be eligible until he does meet an RTW exemption, complies with RTW, or a new three (3)-year compliance period begins.

For individuals added to existing SNAP cases, the eligibility worker will verify any previously countable months within the current three (3)-year compliance period before the individual may be added to the existing SNAP case. If an individual moves from one household to another, any countable months within the current compliance period will move with the individual. The chart below describes when to begin considering the three (3) countable months when an exemption changes or when an individual is added to an existing SNAP case.

Situation	RTW Compliance Period
Individual turns 18.	The month after the 18th birthday.
Individual's dependent turns 14 or all dependent children leave the home.	The month after the child turns 14 or leaves the home.
Individual no longer disabled.	The month after it has been established that the disability has ended.
Woman no longer pregnant but there is not a dependent child in the home.	The month after the woman becomes able to work.

Any period of participation in SNAP while an individual is exempt from the RTW will not count toward the individual's three (3)-month participation limit. However, once a 36-month compliance period has been established it runs continuously even if the individual later becomes exempt from the RTW and then loses that exemption.

EXAMPLE: On May 25, 2026, Sara applies for SNAP. Sara's three (3)-year compliance period began on January 1, 2025. Her application is approved the same day, and she receives a prorated benefit amount for May. May does not count toward her three (3) months in three (3) years count. In July 2026, she reports that she is pregnant, therefore she meets an exemption. In August 2026, she reports that she miscarried, and she is released to return to work on September 1, 2026. Sara no longer meets an exemption, and she is not meeting the RTW. Sara used 1 month in June 2026. She was exempt for July and August and used two (2) months in September and October. Unless Sara becomes eligible by meeting an exemption or complying with the RTW she is not eligible to participate in SNAP again until January 1, 2028.

The following chart provides an explanation of Sara's RTW Status.

	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
2025	N	N	N	N	N	N	N	N	N	N	N	N
2026	N	N	N	N	P	M1	EX	EX	M2	M3	N	I
2027	I	I	I	I	I	I	I	I	I	I	I	I

W = Working at least 20 hours; **ET** = Participating in qualifying work activity; B1, B2, B3 = Bonus months; **M1, M2, M3** = Countable month; **N** = Not participating in SNAP; **I** = Ineligible for SNAP because ABAWD does not meet work requirements and has used countable months.
P=Partial month of benefits. **EX** = Exemptions.

3520 Establishing Good Cause

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If an Able-Bodied Adult Without Dependents (ABAWD) circumstances change in a way that potentially causes them to lose their eligibility, good cause must be determined. The eligibility worker should consider all facts and circumstances including information provided by both the household and/or the employer when determining good cause.

- If the individual would have worked twenty (20) hours/week (or an average of eighty (80) hours per month) but missed work for a good cause, the individual would be considered to have met the work requirement if the absence from work is temporary and they intend to return to work.

Good cause includes circumstances beyond the household member's control, such as, but not limited to illness, household member illness requiring the presence of the member, household emergency, or the unavailability of transportation.

- The individual is considered to have met the work requirement if the circumstance is temporary and they intend to return to work, including lack of transportation.

Good cause will be determined on a case-by-case basis.

3530 Disqualifying Individuals Who Fail to Comply

SNAP Manual 07/01/2026

At application, renewal, or reported change, the eligibility worker must evaluate the Requirement to Work (RTW) status of all nonexempt household members. See SNAP 3502 for an explanation of RTW exemptions. Any nonexempt member who has participated in the Supplemental Nutrition Assistance Program for three (3) months, consecutive or not, since the beginning of three (3)-year RTW compliance period without meeting the RTW will be ineligible to participate in the Supplemental Nutrition Assistance Program.

If the individual who is disqualified due to failure to comply with the Requirement to Work (RTW) is the only household member, the SNAP case will be closed. If other household members remain eligible, the instructions in SNAP 1623.2, will be used to determine the household's monthly SNAP benefit amount. The disqualification will continue until the end of the designated three (3)-year period or until the member regains eligibility (see SNAP 3520-3530).

3531 Evaluating RTW Status

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The following checklist may be used to evaluate exemption from or complying with the Requirement to Work (RTW).

Step 1: Identify RTW/Able-Bodied Adult Without Dependents (ABAWD) Individuals:

Use the checklist below to help determine RTW/ABAWD status for each household member between and including the ages of eighteen (18) and sixty-four (64.). Members seventeen (17) years of age or younger or sixty-five (65) years of age or older are not subject to RTW or the time limit or any penalty.

If a "YES" is answered to any of the questions below, that individual is exempt from the RTW.

- ☐ Is this individual exempt from General Work Requirements and not between sixty (60) to sixty-four (64) years of age? (See SNAP 3200)
- ☐ Is the able-bodied adult responsible for a dependent child under fourteen (14) years of age who resides in the SNAP household?
- ☐ Is this individual mentally or physically unable to work? (If so, request a statement from a healthcare provider. This should only be requested if it is not obvious.)
- ☐ Is this individual pregnant? (self-attestation acceptable)
- ☐ Does this individual belong to one of the following groups: Indian, Urban Indian or California Indians (as these terms are defined by the Indian Health Care Improvement Act)?

If the answer to any of the questions below is "YES," the individual is complying with the RTW.

- ☐ Is this individual already working at least twenty (20) hours per week (or an average of eighty (80) hours per month)? Work can be for pay, for goods or services (for something other than money), unpaid, or as a volunteer.
- ☐ Is this individual participating in a work program for at least eighty (80) hours per month?
- ☐ Is this individual doing a combination of work and/or a work program at least twenty (20) hours per week

(or an average of eighty (80) hours/month)?

☐ Is this individual complying with E&T?

If none of the above are checked and the individual has already received the three (3) countable months, go to Step 2:

Step 2: Client is not eligible until they comply with RTW and must be notified with a Notice of Action.

3532 Notices for Non-Compliance with the Requirement to Work

SNAP Manual 07/01/2026

If any member is disqualified for failure to comply with the RTW, the household will be notified via a DCO-0001 *Notice of Action*, and the notice will include:

- Why the member has been disqualified
- When the disqualification will be imposed
- Period of disqualification
- How the member may comply with the RTW
- Who is exempt from the RTW
- Right to fair hearing

3540 Regaining Eligibility

SNAP Manual 07/01/2026

Individuals who have used their three (3) countable months may regain eligibility at any time by:

- Verifying that he or she is meeting one (1) of the requirements: work an average of eighty (80) hours per month, participate in a work program or a qualifying Employment and Training component, a qualifying combination of the first two (2), or will meet an exemption within the thirty (30) days after application. The client must provide verification that they are meeting the requirement or must wait until the three (3) year period ends to receive benefits.

SNAP eligibility may be regained for an additional three (3) countable Bonus months (months must be consecutive) if during a thirty-day period the individual has eighty (80) hours of work within a thirty (30)-day period.

3540.1 Meeting an Exemption

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Individuals who have used their three (3) countable months may regain eligibility at any time by meeting an exemption from the RTW. See SNAP 3502 for a list of individuals who are exempt from RTW.

3540.2 Three Consecutive Bonus Months

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Individuals who have already received three (3) countable months during the current thirty-six (36) month RTW compliance period may be eligible for three (3) bonus months if he or she worked eighty (80) hours or more during any thirty (30) consecutive day period. The individual must meet the following criteria to receive bonus months:

- The ABAWD must have gained eligibility but is no longer fulfilling the work requirement.
- If the individual was working, the consecutive three (3) bonus months must start when the participant notifies the State agency that he or she is no longer meeting the Requirement to Work.
- If the individual was participating in a work program, the consecutive three (3) bonus months must start when the State determines the ABAWD is no longer in compliance.
- The ABAWD must not have received an additional three (3) consecutive bonus months more than once in the same three (3)-year period.

The three (3) additional bonus months must be used consecutively.

EXAMPLE: Bill applied for SNAP on October 10, 2025, and is determined to meet requirements for expedited benefits. October is not a countable month since he only received a partial benefit amount.

On November 3, 2025 Bill is recertified; however, he reports he is now working twenty (20) hours/week making minimum wage/hour. Since he meets RTW then he will be eligible to participate in SNAP.

In February 2026, Bill's case closed because he failed to complete his renewal. He reapplies for SNAP on July 2, 2026, and reports that he is no longer working and meets no other exemption. Bill receives a partial month of benefits in July and full benefits for August-September-October. He has received his three (3) countable months as of October 2026. However, he's eligible for three (3) consecutive bonus months of November, December and January because he had eighty (80) hours of work for thirty (30) consecutive days within the compliance period.

His case will close effective February 2027, and he will be ineligible until January 2028 unless he complies with the RTW or meets an exemption.

The following chart provides an explanation of Bill's RTW Status:

	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
2025	N	N	N	N	N	N	N	N	N	P	W	W
2026	W	W	N	N	N	N	P	M1	M2	M3	B	B
2027	B	I	I	I	I	I	I	I	I	I	I	I

W = Working at least 20 hours; **ET** = Participating in qualifying work activity; B1, B2, B3 = Bonus months; **M1, M2, M3** = Countable month; **N** = Not participating in SNAP; **I** = Ineligible for SNAP because ABAWD does not meet work requirements and has used countable months. **P**=Partial month of benefits. **EX** = Exemption; **B**=3 Consecutive Months Bonus

3540.3 Qualifying Work Activity

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The household must notify DHS when a disqualified individual goes to work or otherwise meets RTW. The household is the primary source of information about any member meeting RTW. The worker must determine compliance within ten (10) days from the date of the reported change. If the individual has complied with the RTW or has met an exemption, then the individual will be eligible to participate.

If during a thirty (30) day period, the individual has:

- Worked at least eighty (80) hours per month
- Participated in and complied with a Workforce Investment Opportunity Act (WIOA) Program eighty (80) hours per month
- Participated in qualifying Employment and Training (E&T) Program components
- Participated and complied with a program under section 236 of the Trade Adjustment Act of 1974
- Participated and complied with a program under section 236 of the Trade Adjustment Act of 1974 at least half-time (as defined by the program) in a recognized refugee training program approved, funded, or operated by the Office of Refugee Resettlement (ORR)

EXAMPLE: Judy applied January 3, 2025, and received SNAP for January. She participated in a qualifying RTW activity for February, March and April and reported she went to work in May and worked through August 16. Judy's case closed on September 1, 2025. She did not participate in SNAP from September through December 16. She reapplied on January 15, 2026, and received a partial month of benefits for January. January did not count as one (1) of her three (3) months. She received February, March and April which counted as her M1, M2 & M3. We verified that she had eighty (80) hours of work within thirty (30) days in May through August 2025, therefore she is eligible for three (3) consecutive Bonus Months for May-July 2026. She is ineligible effective September 2026 until January 1, 2027, unless she meets an exemption, or she participates in RTW.

She reapplies on November 4, 2026, and she verifies that she has participated with a WIOA (Workforce Innovation and Opportunity Act) program through Arkansas Workforce Connections for the past thirty (30) days. Judy becomes eligible at application and may participate as long as she

complies with RTW.

The following chart provides an explanation of Judy's RTW status.

	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
Year 1	P	WIOA	WIOA	WIOA	W	W	W	W	N	N	N	N
Year 2	P	M1	M2	M3	B1	B2	B3	I	I	I	WIOA	WIOA
Year 3	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA	WIOA

W = Working at least 20 hours; **ET** = Participating in qualifying work activity; **M1, M2, M3** = Countable month; **B1, B2, B3** = Bonus months; **N** = Not participating in SNAP; **I** = Ineligible for SNAP because ABAWD does not meet work requirements and has used countable months; **P**=Partial month of benefits. **EX** = Exemptions. **WIOA**=Workforce Innovation and Opportunity Act

3600 SNAP E&T Programs

SNAP Manual 07/01/2026

Section deleted 07/01/2026

3610 Registration

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Section deleted 07/01/2026

3610.1 Establishing If E&T Is Appropriate

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Section deleted 07/01/2026

3620 E&T Program Referral

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Section deleted 07/01/2026

3621 Automated Referrals

SNAP Manual 07/01/2026

Section deleted 07/01/2026

3621.1 State Agency Responsibilities

SNAP Manual 07/01/2026

Section deleted 07/01/2026

3622 Provider Determination

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A provider determination is when an E&T provider determines that an E&T participant is not a good fit for a particular E&T component. Only the E&T provider has the authority to determine if an individual is not a good fit for the E&T component at any point between the time an individual is referred to an E&T component until

completion of the component.

The State agency is responsible for ensuring all E&T providers are informed of their authority and responsibility to determine if an individual is not a good fit for a particular E&T component. Such determinations shall be referred to as provider determinations. The E&T provider must notify the State agency of the provider determination within ten (10) days of the date the determination is made. This notification must include the reason for the provider determination. If an E&T provider finds an individual is not a good fit for one (1) component offered by the E&T provider, the provider may switch the individual to another component and inform the agency of the new component without need for the agency to act further on the determination.

The E&T provider may also provide input on the most appropriate next step for the individual with a provider determination. If the State agency is unable to obtain the reason for the provider determination from the E&T provider, the agency must continue to act on the provider determination.

3622.1 State Agency Response to Provider Determination

SNAP Manual 07/01/2026

When the agency receives notification that an individual has received a provider determination, and the individual is not exempt from the work requirement, the agency must:

- Notify the E&T participant, within ten (10) days of receiving notification from the E&T provider, of the provider determination. This notification will:
 - Explain what provider determination is
 - Explain next steps that the agency will take as a result of the provider determination
 - Explain that the individual is not being sanctioned as a result of the provider determination
- Re-screen the individual for participation in the SNAP E&T program
- Provide the individual with information about workforce partnerships. Reassess the individual for any mental or physical impairments
- If the individual is found to be physically or mentally unfit, the individual will be exempt from the work requirement

If the participant is an ABAWD and has received a provider determination, the individual must be notified that they will accrue countable months toward their three (3) month participation time limit. The months will begin to accrue the next full benefit month after the month during which the participant has been notified of the provider determination, unless the individual fulfills the work requirements, has good cause, or is otherwise exempt.

The participant may be notified verbally or in writing, and must document when the notification occurs in the participant's case file.

3630 Reimbursement/Payments

SNAP Manual 07/01/2026

Each E&T participant will be eligible to receive reimbursement for transportation necessary to enable the individual to comply with required component activities. Reimbursement for transportation will be based on actual expenses (for example mileage to and from the SNAP E&T service component site) of the current allowable state mileage reimbursement rate or the actual costs (for example for bus service or transportation provider) whichever is greater but not to exceed the maximum of nine hundred dollars (\$900) per federal fiscal year per participant. E&T reimbursements for transportation may include transportation costs such as:

- Bus tokens
- Gas vouchers
- Prepaid gas cards
- Automobile repairs
- Carpools
- Mileage reimbursements
- Taxicab services
- Contracts with private entities, such as transit providers who provide shuttle services
- Purchase of tires or automobile batteries
- Driver license fees (including renewals)

Other expenses related to E&T Program participation may be reimbursed when necessary, and reasonable for participation in the E&T program. These requests must be handled on a case-by-case basis and may include:

- GED test payments, uniforms, personal safety items, or other necessary equipment, and books or training manuals
- Suitable clothing for job interviews
- Licensing and bonding, or background check fees for a work experience placement
- Vision needs (such as eyeglasses and eye exams)
- Dependent care costs necessary for the participation of a household member in the E&T Program up to the actual cost of dependent care, or the applicable payment rate for childcare, whichever is lowest.

Total annual E&T reimbursement may not exceed nine hundred dollars (\$900) per federal fiscal year per participant. This includes both transportation costs and other costs. This reimbursement will not be counted as income in the SNAP budget (see SNAP 5411).

Questionable claims for reimbursement should be referred to the SNAP E&T Program Eligibility Supervisor for resolution.

3631 Transportation Reimbursement Payments

SNAP Manual 07/01/2026

Each month that an E&T Program participant incurs a transportation expense, the E&T Program participant must complete a *Travel Reimbursement Documentation* (DCO-243) form.

If public transportation is used, a copy of the bus ticket or a receipt should be attached. If the participant pays another individual to furnish transportation, that individual must provide a signed statement indicating the dates on which transportation was provided and the amount paid for the transportation.

3640 Information Supplied to DHS by the Provider

SNAP Manual 07/01/2026

When an E&T Provider becomes aware that an E&T Program participant has gone to work, the provider worker will notify the State Agency via an *Employment/Income Change* task from SNAP Works. The E&T Provider will transmit this information within ten (10) days of the reported change. This information will be processed according to the household's reporting requirements.

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Section deleted 07/01/2026

3700 Workfare

SNAP Manual 07/01/2026

Sections 3700-3780 deleted 07/01/2026

- 3710 Conditions of Formal & Comparable Workfare Employment
- 3710.1 Conditions of Formal Workfare
- 3710.2 Conditions of Comparable Workfare
- 3720 Who is Subject to Workfare
- 3730 Determining Formal and Comparable Workfare Hours
- 3740 Referral of Workfare Eligibles
- 3740.2 Referral of Comparable Workfare Eligibles
- 3750 Formal Workfare Sponsor Responsibilities
- 3751 Beginning Workfare Participation
- 3751.1 Beginning Formal Workfare Participation
- 3751.2 Beginning Comparable Workfare
- 3752 Monitoring and Reporting
- 3752.1 Formal Workfare Monitoring and Reporting
- 3752.2 Comparable Workfare Monitoring and Reporting
- 3753 Formal Workfare Optional Grievance Procedures
- 3760 Sanctions for Non-Compliance with Workfare *deleted 01/01/2017
- 3762 Good Cause for Workfare Non-Compliance
- 3763 Determining Good Cause
- 3764 Notice of Adverse Action
- 3765 Consequences of Non-Compliance with Workfare
- 3766 Ending a Sanction
- 3780 Sharing Formal Workfare Savings-Enhanced Reimbursement

SNAP CERTIFICATION MANUAL –SECTION 6000

6100 Deductions -- Summary

Deductions Summary

6100 Deductions – Summary

SNAP Manual 07/01/2026

When calculating a Supplemental Nutrition Assistance Program (SNAP) budget, a certified eligibility worker must determine which deductions will be used in that budget. There is one (1) deduction that is uniformly used in every budget calculated. This is the standard deduction.

The standard deduction is used in every budget calculated. The amount of the standard deduction is dependent on the household size.

The earned income deduction is applied in every budget when the household contains a member with earnings.

The farm loss deduction is applied only when a household has a member engaged in a farming operation and that operation sustains a loss.

Dependent care deductions apply when there are payments for the care of a child or an incapacitated adult, so that a household member can work or attend training to prepare for work.

Households that include a person aged sixty (60) or older or individuals living with a disability are allowed an excess medical deduction. These eligible individuals with medical costs that exceed thirty-five dollars (\$35.00) per month per household, but less than the standard medical deduction amount (see Appendix D) per month per household, will be assigned the standard medical deduction.

A child support deduction is allowed for legally obligated child support paid by a household member to an individual who is not a household member.

Excess shelter cost deductions are allowed when any household's monthly costs for rent or house payment, real estate taxes, insurance on the home, and utilities exceed fifty percent (50%) of the household's income following all other deductions. There is no limit to the amount of excess shelter cost deductions for households containing a person aged sixty (60) or older or individuals living with a disability. All other households have a limit.

These are the only deductions that can be used when calculating a SNAP budget.

Deductions are applied after the gross income has been calculated. The gross income is calculated by determining the total gross amount of all income after all exclusions.

SNAP CERTIFICATION MANUAL –SECTION 6000

6100 Deductions -- Summary

Deductions Summary

See SNAP 5400 (explaining income exclusions).

See SNAP 5500-5700 (explaining countable income).

See SNAP 7000 (explaining calculation of gross income prospectively).

Each deduction is discussed in the order that it is applied when calculating a SNAP budget.

SNAP CERTIFICATION MANUAL –SECTION 6000

6500 Medical Deduction

6520 Medical Standard or Actual Expenses

6520 Medical Standard or Actual Expenses

SNAP Manual 07/01/2026

Households with allowable medical expenses may claim the medical standard deduction or elect to deduct actual medical expenses. The medical standard is a predetermined deduction that an eligible household may elect to use in the SNAP budget to calculate total medical costs.

Standard Medical Deduction

Households with allowable medical expenses who wish to claim medical deductions may claim the medical deduction if they have medical expenses of at least thirty-five dollars and one cent (\$35.01). If expenses are less than the standard medical deduction amount (see Appendix D), the medical standard will be assigned, if they choose to claim and verify all their medical expenses. If medical expenses are greater than the standard medical deduction amount (see Appendix D), the household may choose either the medical standard or their actual medical expenses. If a household chooses to claim their actual expenses, the household will need to supply verification of all costs.

To be eligible for the standard medical deduction (see Appendix D), the following conditions must be met at initial and subsequent case actions:

- Households must verify, at each initial application, that they have incurred more than thirty-five dollars (\$35.00) per month in qualifying medical expenses.
- Households must attest at each re-certification and subsequent case action that they still have medical expenses of more than thirty-five dollars (\$35.00) per month. An attestation is a verbal statement, written statement, or appropriate response to a question supplied on a form. No further verification is required.
- Previously unreported medical expenses reported after initial application must be verified. Verification of these previously unreported medical expenses must show that the household incurred a medical expense of more than thirty-five dollars (\$35.00) per month.

Actual Medical Deduction

For households choosing actual medical expenses, the eligibility worker should obtain the best estimate from the household at certification and subsequent case actions to anticipate medical expenses based on the best information available. The household is under no obligation to report changes in medical expenses but is allowed to do so. The worker will act on any reported changes in medical expenses.

The worker must consider several factors when anticipating medical expenses:

1. How often is the expense incurred? See SNAP 6521.
2. Will the expense be reimbursed? See SNAP 6522.
3. Is the expense past due? See SNAP 6523.

14340 Availability of Benefits

SNAP Manual 07/01/2026

SNAP benefits are available twenty-four (24) hours a day, seven (7) days a week. See Appendix BB for monthly issuance availability dates, as well as time availability for monthly and daily issuances.

Proposed Rulemaking

Title: Job Search Activities During TANF Application Process

Promulgated by:
Department of Human Services
Division of County Operations

Title 20. Public Health and Welfare

Chapter XIII. Division of County Operations, Department of Human Services

Subchapter A. Generally

Part 502. Transitional Employment Assistance Policy Manual

Subpart 2. TEA Application

20 CAR § 502-201. TEA applications generally.

(a) Department of Human Services county offices will accept and process applications for the Transitional Employment Assistance Program.

(b) A transitional employment assistance (TEA) application must be disposed of by either approval or denial as quickly as possible but no later than thirty (30) calendar days from the date the application was received by the department, unless the eligibility worker determines that the applicant needs more time in order to establish their eligibility for services.

(c) The TEA eligibility requirements are:

- (1) Personal Responsibility Agreement requirement;
- (2) Social Security number enumeration;
- (3) Minor parent requirements;
- (4) Children's age and relationship to parent or adult caretaker requirement;
- (5) Citizenship or alienage requirement;
- (6) State residence requirement;

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- (7) Time limit requirement;
- (8) Resource requirement;
- (9) Income requirement;
- (10) Work participation requirement; and
- (11) Child support requirement.

(d) Each requirement above is discussed in detail in the section of the manual that deals with that specific requirement.

(e) Information, to establish whether a family meets the above requirements, is obtained from the application form and during the application interview.

20 CAR § 502-202. Nondiscrimination.

(a) No person shall be prevented from participation, be denied benefits, or be subject to discrimination on the basis of:

- (1) Age;
- (2) Religion;
- (3) Disability;
- (4) Political affiliation;
- (5) Veteran status;
- (6) Sex;
- (7) Race;
- (8) Color; or
- (9) National origin.

(b) The Department of Human Services will comply with provisions of the Civil Rights Act of 1964, Pub. L. No. 88-352.

(c) The department has the responsibility of informing applicants and recipients:

- (1) That assistance is provided on a nondiscriminatory basis; and
- (2) Of their right to file a complaint with the agency or federal government if

they think that discrimination has occurred on the basis of:

- (A) Age;
- (B) Religion;

- (C) Disability;
- (D) Political affiliation;
- (E) Veteran status;
- (F) Sex;
- (G) Race;
- (H) Color; or
- (I) National origin.

20 CAR § 502-203. Application.

(a) Requests for assistance will be made by completing an:

- (1) Application form (DCO-0004, Application for SNAP, Health Care, and TEA/RCA Benefits) and submitting the application to the county office; or
- (2) Online application through the Department of Human Services' Access Arkansas website, <https://access.arkansas.gov/>.

(b) Application must be made by the parent or another adult caretaker relative of the child.

(c)(1) The application must be signed by the applicant under penalty of perjury.

(2) If both parents are in the home with the child, either may sign the application.

(d) The eligibility worker will assist with completing the form, if requested.

(e) An applicant who has been determined to be job-ready must engage in job search activities while the application is being processed. (f) Job-ready means a person has no physical, mental, job-skill barriers, or other barriers that prevent employment.

20 CAR § 502-204. Application interview — Applications submitted to the Department of Human Services.

(a)(1) An interview with the applicant is required for applications.

(2) If the household consists of two (2) adults, both will be interviewed.

(3) If only one (1) parent is present for the initial interview and it is determined that the family is potentially eligible, an interview will be scheduled for the second adult to ensure that both parents understand their responsibilities.

(b)(1) If the applicant family consists of a parent who is a minor (non-head of household) and his or her child or children, then the adult with whom such minor parent and child are living will also be interviewed with the minor parent. See the note below.

(2) **Note.**

(A) The adult caretaker of the minor parent is required to attend to ensure that he or she is aware of the program requirements and responsibilities that will be expected of the minor parent.

(B) In addition, the adult with whom the minor parent is living will, in most situations, be made the payee for the cash assistance grant and therefore be responsible for ensuring that the grant is used on behalf of the minor parent and child.

(C) This will be explained to the adult and minor parent during the interview.

(c)(1) The application will be reviewed with the applicant, including a review and discussion of the Personal Responsibility Agreement.

(2) Refer to 20 CAR § 502-205.

20 CAR § 502-205. Personal Responsibility Agreement.

(a) The Personal Responsibility Agreement (PRA) is an agreement that provides the individual with responsibilities with which he or she must comply while receiving cash assistance.

(b) The responsibilities include:

(1) Cooperation with the Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration;

(2) Ensuring school-age children are in school;

(3) Ensuring that preschool children receive appropriate immunizations;

(4) Participation in work requirements, if applicable; and

(5) Looking for employment or following up on job referrals before, during, and after approval of the application for assistance.

(c)(1) The PRA will be reviewed with the applicant during the interview.

(2) The PRA reviews are conducted to ensure that the applicant understands it and agrees to comply by signing it.

(d)(1) As part of the PRA discussion, the eligibility worker will be responsible for advising the applicant of the supportive services that are available to both recipients and former recipients who become employed.

(2) This will include a thorough review of the PUB-389 (Supportive Services), with a copy given to the applicant.

(3) The Department of Human Services will give a more detailed explanation of supportive services during the assessment.

(e)(1) If the family includes a non-head of household minor parent, the PRA will also be reviewed with such minor parent who must also sign it.

(2) See 20 CAR § 502-303 for specific requirements related to minor parent households.

(f)(1) If a non-head of household minor parent fails to sign the PRA, the application may be approved with the noncompliance sanction applied.

(2) Refer to 20 CAR § 502-305.

20 CAR § 502-206. Obtaining information to determine eligibility.

(a)(1) The applicant is the primary source of information and is responsible for providing necessary verifications, as requested, to establish initial and ongoing eligibility.

(2) However, if the applicant is unable to provide essential information, or is having difficulty in obtaining it, the eligibility worker will assist in obtaining required information.

(b)(1) The applicant is expected to provide information as requested.

(2) Although the Department of Human Services may assist the applicant, when necessary, the applicant should be encouraged to obtain as much information as they can, on their own, before requesting assistance.

(3) Such assistance may range from simply advising the applicant about how or where to get the information, to actually obtaining the necessary documents, for example, accessing the Department of Health birth records through ARIES.

20 CAR § 502-207. Diversion Assistance.

(a)(1) Diversion Assistance is intended to help a family through a financial problem that jeopardizes employment and that, if not solved, could result in the family requiring regular ongoing cash assistance.

(2) Diversion Assistance is a replacement for, not a supplement to, regular assistance.

(b)(1) Diversion Assistance is a one-time payment to or on behalf of the family that will resolve a financial problem so that the adult can maintain or obtain employment.

(2) Diversion Assistance is only available to an adult once during their lifetime.

(c) The eligibility requirements for Diversion Assistance are as follows:

(1) A minor child must live in the home;

(2) The adult has never received a Diversion Assistance payment;

(3) The Diversion Assistance amount will alleviate the crisis;

(4) The adult:

(A) Is currently employed but having a problem that jeopardizes the employment; or

(B) Has been promised a job but needs help in order to accept the job, for example, they need car repairs or uniforms; and

(5) The adult:

(A) Agrees to forego regular transitional employment assistance (TEA) cash assistance for a period of one hundred (100) days from the date of application; and

(B) Signs a Diversion Assistance Agreement, DCO-182, to that effect.

(d)(1) The regular TEA income and resource requirements do not have to be verified and established.

(2) If the family's resources are obviously over the resource limit, then Diversion Assistance will not be authorized.

(e)(1)(A) The Diversion Assistance payment will be the actual amount needed in order to resolve the crisis for up to a maximum of three (3) months of maximum grant payments for the household.

(B) For example, a household of three (3) = two hundred four dollars (\$204) x three (3) months = six hundred twelve dollars (\$612) maximum diversion payment.

(2) If the amount needed to resolve the problem is more than the maximum payment, and there are no other resources available to assist with the cost, it will be determined whether the maximum will alleviate the crisis in any way.

(3) If not, the payment will not be authorized.

(f)(1) Under Arkansas state law, a Diversion Assistance payment is a loan that the client should repay to the State of Arkansas when able to do so.

(2) Repayment, though, does not entitle the individual to another Diversion Assistance payment in the future.

(g)(1) A Diversion Assistance payment counts as a TEA month or months for purposes of the twelve-month time limit, if the adult later applies for TEA assistance, unless the payment has been repaid.

(2) If not repaid, the diversion payment counts for up to three (3) months of the time limit, based on the amount of the diversion payment, divided by the maximum grant for the family size.

(3) The number of months will be rounded up to the next higher number.

(4) See 20 CAR § 502-309.

(h) **Note.** If the client requests to apply for Diversion Assistance, the client will be referred to the TEA case management unit.

Proposed Rulemaking

Title: Job Search Activities During TANF Application Process

Promulgated by:
Department of Human Services
Division of County Operations

Title 20. Public Health and Welfare

Chapter XIII. Division of County Operations, Department of Human Services

Subchapter A. Generally

Part 502. Transitional Employment Assistance Policy Manual

Subpart 9. Non-Work Participation Eligibility Requirements

Codification Notes. This subpart as promulgated prior to codification into the Code of Arkansas Rules provided as follows: "12/06/11"

20 CAR § 502-901. Periodic reviews.

(a) Time-limited cases.

(1) During employment updates and other periodic contacts with a participant, the Program Eligibility Specialist will ensure that the participant continues to meet eligibility requirements that are subject to change, e.g., child in the home, income, etc.

(2) If it is determined that a family's circumstances have changed, the Department of Human Services will notify the Division of County Operations and continued eligibility will be determined.

(3) The participant will be also be reminded of his or her responsibility to report changes within ten (10) days.

(b) Non-time-limited cases.

(1) Cases that are not subject to the time limit will be reviewed on a yearly basis.

(2) Form DCO-190, TEA/Work Pays Reevaluation, will be sent to the household to complete.

(3) Non-time-limited cases may also be reevaluated during the Supplemental Nutrition Assistance Program recertification or when the semi-annual report is completed.

20 CAR § 502-902. Resources.

(a) Newly acquired resources should be reported to the county office within ten (10) days of receipt.

(b) Resources will be verified according to the same standard used to determine original eligibility.

(c) If the total countable resources available to the unit are over the limit of three thousand dollars (\$3,000), the transitional employment assistance (TEA) case will be closed.

(d) A timely notice will be required prior to case closure.

20 CAR § 502-903. Income.

(a)(1) The Division of County Operations Program Eligibility Specialist or Department of Human Services case manager will discuss income changes during periodic contacts with the participant.

(2) The participant will be advised that he or she must report changes within ten (10) days.

(b)(1) Income and eligibility will be redetermined only when a significant change occurs.

(2) A significant change is defined as:

(A) A new job;

(B) A change in hourly rate or salary;

(C) A status change from part-time to full-time and vice versa;

(D) Loss of a job; or

(E) Start or termination of an unearned source of income.

(c)(1)(A) When a change in income is due to termination of employment or a reduction of earnings, the Department of Human Services worker will determine the reason for the change to ascertain whether it meets the requirements of good cause.

(B) Refer to 20 CAR § 503-224(c).

(2) Verification of a change in income is required.

(d)(1) A decrease in payment or case closure requires a timely notice.

(2) If the case remains eligible but the payment increases, an adequate notice will be sent.

(e)(1) In certain situations, extended support services may be authorized when a TEA case is closed due to earnings.

(2) Refer to 20 CAR § 502-1305 and 20 CAR § 503-213.

20 CAR § 502-904. Recomputing income.

(a) When a family reports a significant change in income, the budget will be recomputed to determine the family's continued eligibility.

(b)(1) If the net countable income exceeds five hundred thirteen dollars (\$513) (income eligibility standard), the family is no longer eligible.

(2) See Example 1.

(3) Refer to 20 CAR § 502-517(e).

(c)(1) If the net countable income does not exceed five hundred thirteen dollars (\$513) and the gross countable income does not exceed one thousand twenty-six dollars (\$1,026), the assistance payment will remain the same.

(2) See Example 2.

(3) Refer to 20 CAR § 502-517(e).

(d)(1) If the net countable income does not exceed five hundred thirteen dollars (\$513) but the gross countable income exceeds one thousand twenty-six dollars (\$1,026), the assistance payment will be reduced by fifty percent (50%).

(2) See Example 3.

(3) Refer to 20 CAR § 502-520.

Example 1: Mrs. Jones receives two hundred eighty-six dollars (\$286) per month assistance for herself, her husband, and her three (3) children. Mr. Jones started to work, and his monthly gross earnings are computed to be two thousand dollars (\$2,000). The income eligibility budget is as follows: \$2,000 (gross earnings) x 80% = \$1,600 - \$960 (60% of \$1,600) = \$640. Since the net countable income of six hundred forty dollars (\$640) exceeds the

income eligibility standard of five hundred thirteen dollars (\$513), the family is no longer eligible.

Example 2: Mr. Thomas receives assistance for himself and one (1) child (one hundred sixty-two dollars (\$162)). He started to work, and his monthly gross earnings are computed to be one thousand twenty-five dollars (\$1,025). The income eligibility budget is as follows: $\$1,025$ (gross earnings) $\times 80\% = \$820$ - $\$492$ (60% of $\$820$) = $\$328$. Since the net countable income is less than the income eligibility standard of five hundred thirteen dollars (\$513), the family remains eligible. The assistance payment (one hundred sixty-two dollars (\$162)) remains the same because the gross earnings (one thousand twenty-five dollars (\$1,025)) are less than one thousand twenty-six dollars (\$1,026).

Example 3: Mrs. Hill receives assistance for herself and two (2) children (two hundred four dollars (\$204)). She has found employment, and her monthly gross earnings are computed to be one thousand two hundred fifty dollars (\$1,250). The income eligibility budget is as follows: $\$1,250$ (gross earnings) $\times 80\% = \$1,000$ - $\$600$ (60% of $\$1,000$) = $\$400$, which is less than the standard of five hundred thirteen dollars (\$513). The family remains income eligible. Since the gross income is greater than one thousand twenty-six dollars (\$1,026) (refer to 20 CAR § 502-518), the assistance payment is reduced by fifty percent (50%). The new assistance payment will be one hundred two dollars (\$102).

(e)(1) Even if the family remains eligible, the participant may choose at any time to have his or her case closed.

(2) The worker should discuss this option with a participant who becomes employed, since each month of receipt reduces the number of months he or she may receive benefits in the future.

20 CAR § 502-905. Child support income exceeds assistance payment.

(a)(1) The Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration sends the transitional employment assistance (TEA) family any current monthly child support collected that is in excess of the TEA payment.

(2) A printout is sent to the county office stating that the child support exceeds the TEA payment.

(3) If the total child support collected, alone or with other countable income, exceeds the income eligibility standard of five hundred thirteen dollars (\$513), action to close the case will be taken.

(4)(A) If the family remains eligible, however, then contact will be made with the participant to discuss options, or alternatives to cash assistance that could benefit the family.

(B) The contact can be:

(i) By phone;

(ii) In writing; or

(iii) During in-person contacts with the participant.

(b) When the child support income exceeds the assistance payment, but the family remains income eligible, the participant will be given the following options:

(1)(A) Close the TEA case and receive the full child support.

(B) Explain to the participant that the child support payment is more than the TEA payment and even though a partial child support payment is being received, the limited months of TEA are continuing to count.

(C) Also, explain that Medicaid may continue and if the absent parent stops paying, reapplication for TEA can be made; or

(2)(A) Continue to receive TEA and the partial child support payments.

(B) Explain to the participant that if this option is chosen, the payments will continue to count toward the time limitation.

(c)(1) It will be the participant's decision as to which option is chosen.

(2) If there is no response from the participant, no further action will be taken on the case.

Example: The family's TEA payment is two hundred four dollars (\$204) per month. The absent parent is paying two hundred twenty dollars (\$220) per month in child support. The Office of Child Support Enforcement is sending the participant sixteen dollars (\$16.00). It would be to the family's benefit to close the TEA case and receive the child support in full. The time limit clock would stop at this point. If the family reapplies in the future, the time limit will pick up from where it previously ended.

(d)(1) Whichever option is chosen, the caseworker should redetermine the family's Medicaid eligibility.

(2) The family may be eligible for three (3) months of extended Medicaid due to child support income or may be eligible in another Medicaid category.

(3) Please refer to Medical Services Policy Manual, 20 CAR pt. 500.

20 CAR § 502-906. Household composition.

(a) An eligible child must be living in the home in order for a family to continue to be eligible for transitional employment assistance (TEA).

(b) Family members must continue to live in the home with the child for continued individual eligibility.

(c) Changes in household composition could result in individuals being added, dropped, or the case closed.

20 CAR § 502-907. Family cap provisions — Newborns.

(a)(1) A child who is born while the mother is receiving transitional employment assistance (TEA) cash assistance either for other children or as a minor child herself will not be included in the case for cash assistance purposes.

(2) In addition, a child who is born within nine (9) months of the month TEA benefits were terminated to the mother will not be included for payment unless the mother's case has been closed continuously for six (6) months.

(b)(1) This provision applies equally to applicants who are pregnant and deliver after certification, and to participants who become pregnant after certification.

(2) There are no exceptions.

(3) The income and resources of a child excluded due to the family cap are disregarded when determining the family's continued eligibility for and amount of cash assistance.

(c)(1) Since the newborn is not eligible for cash assistance, the father of such newborn living in the home, who is not already included in the assistance unit, will not be added to the unit solely due to the birth of the child.

(2) His income and resources will not be considered for cash assistance.

(3) However, if he and the mother marry, he will be added (as the stepparent of the child or children receiving cash assistance) and his income and resources will then be considered.

(d) The family cap provision does not apply to a child who moves into the home from another home (see 20 CAR § 502-908).

(e)(1) A separate Medicaid determination for the child may be required.

(2) Refer to Medical Services Policy Manual, 20 CAR pt. 500.

(3) The referral to the Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration will be made in ANSWER.

20 CAR § 502-908. Adding other individuals.

(a) A child or other adult who moves into the home and meets all eligibility requirements will be:

(1) Added to the transitional employment assistance (TEA) case; and

(2) Eligible for payment.

(b) The county will obtain a new DCO-215 in order to obtain information needed to establish the new member's eligibility and the continuing eligibility of other family members.

(c) **Note.**

(1) A child to whom the family cap provision has been applied, either under the AWDP waiver or under TEA, will continue to be subject to the family cap provision, unless the case has been closed continuously for a period of six (6) months.

(2) In addition, a child who was born within nine (9) months after case closure will not be added unless the case has been closed continuously for six (6) months.

(3)(A) This does not apply to a child who was under the family cap but was later added for payment.

(B) He or she will continue to be eligible.

(d) Once all eligibility requirements have been established for the new individual, he or she will be added.

(e) **Procedures for adding a person.**

(1) Obtain and record sufficient information to verify all eligibility requirements for the person being added.

(2) Complete a new budget in ANSWER to determine the unit's continuing eligibility and grant amount.

(3) If appropriate, send notice to the individual advising him or her that a referral will be made to the Department of Human Services for work activity participation.

(4) Complete Form DHS-3350 for referrals to agencies for requested services such as family planning services.

(5) Make any other necessary referrals to agencies or organizations to help meet a specific family need such as housing assistance.

(6)(A) If a child is being added for whom cooperation with the Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration is required, provide the casehead an opportunity to claim good cause (DCO-90) prior to requiring his or her cooperation.

(B) If good cause is not claimed or does not exist, the referral will be made by adding the absent parent's name to the appropriate section in ANSWER.

(C) If good cause is determined to exist, no referral will be made.

(7) Submit the budget in ANSWER.

(8) In situations in which a system notice is not generated, notify the participant of the action by Form DCO-1.

(f) **Effective date of payment.**

(1) The effective date of payment for the individual will be the first day of the month in which the worker determines the individual's eligibility.

(2)(A) Applications to add people will be processed within thirty (30) days.

(B) Benefits will not be prorated.

(C) The grant amount will be adjusted based upon one (1) additional assistance unit member and the countable income of that family member.

Example: Ms. Jones' son had been living with his grandmother. He moved back to his mother's home on July 22. Ms. Jones applied on July 23 to add her son to her TEA case. She completed the action on July 25. Ms. Jones currently receives a payment in the amount of two hundred four dollars (\$204) and her new payment amount will be two hundred forty-seven dollars (\$247). For the month of July, Ms. Jones will receive an additional forty-three dollars (\$43.00) (difference between two hundred forty-seven dollars (\$247) and two hundred four dollars (\$204)). If eligibility is not determined until August, benefits for her son will start in August. No retroactive benefits will be paid.

20 CAR § 502-909. Dropping individuals from the TEA grant.

(a)(1) Individuals who become ineligible for transitional employment assistance (TEA), e.g., die, move from the home, reach the maximum age for a child, will be dropped from the TEA case.

(2) The casehead is eligible to receive assistance for the individual for the month in which the change occurs.

(b) In the case of a payee adult who becomes ineligible because he or she is no longer living in the home, a change in payee will also be made.

(c) When an individual is dropped from the grant, the worker will complete the following tasks:

- (1) Record pertinent information in the case record;
- (2) Complete a new budget in ANSWER to determine the family's continuing eligibility and payment amount;
- (3)(A) Give advance notice (system generated or DCO-1), if necessary.

- (B) If advance notice is not necessary, notify the participant that the action has been taken via Form DCO-1 if a system generated notice is not sent; and
- (4) Submit the completed budget.

20 CAR § 502-910. Marriage of the TEA parent.

When a transitional employment assistance (TEA) participant reports a marriage, the worker will:

- (1) Require an application to add the new spouse to the unit unless the spouse is a Supplemental Security Income participant;
- (2) Determine if the person married is employed or has any other income or resource;
- (3) If the family remains eligible, refer the new member to the Department of Human Services for work participation requirements;
- (4) Record all pertinent information in the appropriate section of ANSWER;
- (5) Complete a new budget in ANSWER;
- (6)(A) Allow the participant an opportunity to complete a Voter Registration Application so that he or she can report an address or name change to the county clerk's office if he or she so chooses.
- (B) Refer to Voter Registration Appendix;
- (7) In situations in which a system notice is not generated, notify the participant by Form DCO-1, if appropriate; and
- (8) Submit the budget in ANSWER.

20 CAR § 502-911. Time limit.

- (a)(1) Beginning April 1, 2024, a family who meets all the eligibility requirements may receive transitional employment assistance (TEA) cash assistance benefits for a period of up to twelve (12) months.
- (2) The twelve (12) months do not have to be consecutive months.
 - (3) The months counted are based on receipt by the adult recipient or head of household minor parent.
- (b) The time limit does not apply:

(1) To cases in which the only parent in the home, or both parents if both are living in the home, receives Supplemental Security Income benefits, and therefore, no adult is included in the case;

(2) In the months in which an individual is deferred or exempt from work activity participation; or

(3)(A) In the months in which an under the age of eighteen (18) non-head of household minor parent receives cash assistance.

(B) The count will begin when the minor reaches eighteen (18) years of age.

(b)(1) The time limit applies to nonparent caretakers' relatives only when such relatives choose to be included in the TEA payment with the child.

(2) If a nonparent relative is a payee only, then the time limit does not apply to the case.

(c) The time a child receives assistance will not count toward his or her time limit when he or she becomes an adult.

(d)(1) Payments made by another state under a Temporary Assistance for Needy Families program count toward the twelve-month limit in Arkansas if the adult has received more than forty-eight (48) such payments in another state.

(2) Only the payments from another state in quantity that is in excess of forty-eight (48) will count toward Arkansas's twelve-month limit.

(e)(1) Diversion Assistance payments also count toward the twelve-month limit if not repaid.

(2) See 20 CAR § 502-309.

(f) **Note.** A client may request case closure at any time during receipt of assistance.

(g)(1) During periodic contacts, the Program Eligibility Specialist will inform the client of the number of months of TEA eligibility remaining.

(2) The Program Eligibility Specialist should continue to stress to the client the importance of employment because of the time limit.

(h)(1) The Program Eligibility Specialist will explain to the recipient what action will be taken once the twelve-month time limit has been reached.

(2) Refer to 20 CAR § 502-1302 for termination procedures.

(3) The Program Eligibility Specialist will advise that the TEA case be closed unless it is determined that an extension, or exemption from the time limit, should be granted (see 20 CAR § 502-912).

20 CAR § 502-912. Time limit exemptions, extensions, reviews, and closures.

Refer to sections 4141 – 4147 of the TEA Case Management Manual.

20 CAR § 502-913. Appeal rights.

(a) If the decision is to close the case at the end of twelve (12) months and not allow an extension, the client has the right to appeal that decision through the Office of Appeals and Hearings of the Department of Human Services.

(b) However, benefits will not be continued pending the hearing decision after the twelve (12) months.

(c) Retroactive payment may be made if the hearing decision overturns the case closure decision.

20 CAR § 502-914. Failure to comply with non-work-related aspects of the Personal Responsibility Agreement.

(a) Child support.

(1) Failure to comply with child support requirements will result in a twenty-five percent (25%) reduction in the transitional employment assistance (TEA) payment.

(2) The Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration will:

(A) Determine if a parent or other adult caretaker relative has failed to comply with child support requirements;

(B) Determine if the client had a satisfactory reason for the act of noncompliance;

(C) Provide the client an opportunity to appeal the noncompliance decision prior to notifying the Department of Human Services; and

(D)(i) Impose the noncompliance sanction if a parent or other adult relative fails to comply with child support requirements.

(ii) See below.

(3)(A) Child support sanctions will be processed automatically through ANSWER.

(B) ANSWER will process sanction request files from the Office of Child Support Enforcement each night, then complete a budget to apply the sanction.

(C) WACE will be updated with the new grant amount, and an adequate notice will be system-generated.

(D) The notice will advise the client of his or her right to request an administrative hearing of the payment reduction.

(4)(A) However, the payment reduction is the only appealable issue to the Department of Human Services.

(B) Since the Office of Child Support Enforcement made the noncompliance decision and has already provided the client an opportunity to appeal it, the noncompliance decision is not an appealable issue with the Department of Human Services.

(b) Lifting the child support sanction.

(1) A child support sanction may be lifted at any time a parent or other adult caretaker relative complies with the Office of Child Support Enforcement.

(2) If the parent or other adult caretaker relative wishes to have the sanction lifted by complying with the Office of Child Support Enforcement:

(A) A referral will be made to the Office of Child Support Enforcement; and

(B) Notification from the Office of Child Support Enforcement that he or she has cooperated must be received prior to the assistance being restored to the full amount.

(3)(A) If a customer whose cash assistance payment was reduced due to noncooperation with the Office of Child Support Enforcement states a willingness to cooperate and appears at the Office of Child Support Enforcement office, but the reason for noncooperation was that the customer had previously failed to appear in court, then he or she must actually appear at the next scheduled court date the Office of Child Support Enforcement arranges in order to be fully cooperating.

(B) In this situation, the payment will remain at the reduced amount until he or she appears at the scheduled court date.

(C) The Office of Child Support Enforcement will:

(i) Notify the county office of this stipulation when the applicant is first referred to them for cooperation; and

(ii) Follow up with a notice to the county office following the customer's appearance at court.

(c) **School attendance.**

(1) School attendance is required in order for an eligible child to receive assistance.

(2)(A) For purposes of this subsection, school attendance relates only to children and not minor parents.

(B) Refer to 20 CAR § 503-135 for minor parent education requirements.

(3)(A) During the application process, the worker may accept the applicant's statement that all school-age children are enrolled in and satisfactorily attending school.

(B) Enrollment and satisfactory attendance will be verified with the school, and documented in the case record, in those cases where it is reported that one (1) or more children in the family has failed to enroll or attend school regularly.

(C) Such reports may come from any of several sources, including, but not limited to, the school system locally, courts, system-generated reports supplied by the state Department of Education, etc.

(4)(A) "Satisfactory attendance" is defined in accordance with the school's definition of attendance.

(B) During periodic contacts with the parent, a declaration of school attendance will be accepted unless attendance appears questionable, e.g., information received from other sources that the child is not attending.

(C) Form DCO-65 may be completed by the school to verify attendance.

(D) Phone contact or other documentary evidence from the school may also be accepted.

(5) If a child is being homeschooled, verification that there is an approved homeschooling application on file with the school superintendent may be required if the client's homeschooling allegation appears questionable.

(6) If the child is not enrolled in school:

(A) A ten-day notice will be issued to the casehead stating that the child will be dropped from the TEA case unless verification is received that the child is attending school;

(B) The unearned income and resources of the child will be counted in determining continued eligibility; and

(C) In order to be added back to the case, verification must be received from the school that the child has attended satisfactorily for a period of thirty (30) days.

(d) **Immunizations.**

(1)(A) Immunizations of preschool-age children is a requirement for TEA.

(B) Exemptions to this requirement due to religious beliefs or medical problems may be approved as described below.

(2) If a parent was given thirty (30) days to have the children included in the TEA case immunized:

(A) Verification must be provided by the thirtieth day;

(B) If the parent does not bring the verification, the worker will issue a ten-day notice stating that unless verification of the immunizations is received, the TEA cash assistance payment will be reduced; and

(C) The family may provide the child's immunization (shot) record or verification from the local health department or physician.

(3) See Appendix A for the American Academy of Pediatrics Immunization Schedule, which identifies the age and type of immunization the child should have.

(e) **Exemptions due to religious beliefs or medical problems.**

(1) A parent or caretaker relative who refuses to have a child immunized because of religious beliefs or because of a medical problem, e.g., allergic reaction, must provide verification that an exemption has been granted by the Department of Health.

(2)(A) To obtain such exemption, the parent must request a Religious Exemption Application or Medical Exemption Application from the Department of Health.

(B) The address is 4815 West Markham, Little Rock, AR 72205.

(C) The toll free telephone number is 1-800-482-5400.

(3) Upon completion, the application must be submitted to the Department of Health at the above address for a decision.

(4) The decision will be sent directly to the parent or parents or caretaker relative.

(5)(A) The normal processing time is two (2) weeks.

(B) The parent or parents or caretaker relative must provide verification of the decision within thirty (30) days from the date the TEA application is approved or the date in which the child is added to the TEA case, if eligible for payment.

(C) Failure to provide such verification will result in the TEA cash assistance payment being reduced after appropriate notice.

(D) If, however, a decision remains pending from the Department of Health at the end of the thirty (30) days, verification of pending status will be obtained by the applicant from the Department of Health and provided to the case worker.

(6) **Note.** Requests can be made only to the central office of the Department of Health listed above, not to the local health units.

20 CAR § 502-915. Cooperation with Quality Control Reviews.

(a) The Quality Control Unit will conduct desk reviews of Transitional Employment Assistance Program (TEA) cases.

(b) Reviewers will check cases for the following:

- (1) a signed DCO-0004, Assistance Application;
- (2) a signed DCO-0217, Personal Responsibility Agreement (signed at the time of application);
- (3) a signed DCO-1411, TANF Drug Assessment Questionnaire, for each active adult member on the case who is not exempt from the requirement; and
- (4) other required eligibility information.

20 CAR § 502-916. Applicant Job Search.

- (a) A job-ready adult who is included in the TEA assistance unit and is required to engage in job search activities during the application process must submit the Applicant Job Search Form or other acceptable documentation.
- (b) The documentation must be provided by the due date indicated in the attached 10-day notice.

(c) (1) If documentation is not provided by the due date and all other eligibility requirements have been met, the application will be approved with a 25% noncompliance sanction.

(2) After the case has been approved, the 25% applicant job search sanction will be lifted at any time the recipient is complying with an assigned work activity.

(d)(1) If an applicant obtains a job during the application process, job search documentation will not be required.

(2) At this point, the eligibility worker should discuss possible alternatives to ongoing cash assistance.

(3) If the applicant chooses to continue processing the application, then countable earned income will be considered to determine the family's income eligibility.

(f)(1) If an applicant is not job-ready (meaning, has good cause for failure to cooperate), he or she will not be required to comply with the applicant job search requirement.

(2) Good cause for failure to cooperate with applicant job search includes, but is not limited to:

(A) childcare barriers;

(B) transportation barriers;

(C) physical or mental health;

(D) education or job training barriers; and

(E) physical, mental, job-skill barriers, or other barriers that prevent employment.

Proposed Rulemaking

Title: Job Search Activities During TANF Application Process

Promulgated by:
Department of Human Services
Division of County Operations

Title 20. Public Health and Welfare

Chapter XIII. Division of County Operations, Department of Human Services

Subchapter A. Generally

Part 503. Transitional Employment Assistance and Work Pays Policy Manual

Subpart 15. Arkansas Work Pays Program

20 CAR § 503-1501. Arkansas Work Pays Program generally.

(a)(1) Acts 2005, No. 1705, established the Arkansas Work Pays Program.

(2) The Arkansas Work Pays Program is an incentive program designed to encourage working Transitional Employment Assistance Program participants to remain employed after closure of the transitional employment assistance (TEA) case while increasing their hours of work and/or hourly wage.

(b)(1) Provided they meet Arkansas Work Pays Program eligibility requirements, families participating in the Arkansas Work Pays Program will receive:

(A) A monthly cash assistance payment in the amount of two hundred four dollars (\$204) for up to twelve (12) months;

(B) Case management;

(C) Supportive services; and

(D) Job retention and advancement services.

(2) The twelve (12) months will count toward the federal sixty-month time limit but not the state's TEA twenty-four-month limit.

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(3) If the participant reaches sixty (60) months while participating in the Arkansas Work Pays Program, an automatic extension will be given to the sixty-month time limit.

(4) This work incentive program may be limited to three thousand (3,000) families.

(c)(1) The worker will explain the Arkansas Work Pays Program to the applicant and provide an Arkansas Work Pays Program pamphlet during the initial interview for TEA cash assistance.

(2) The Program Eligibility Specialist will discuss the Arkansas Work Pays Program with the participant during ongoing case management activities.

(3) When the TEA case closes due to employment, the participant will receive additional information about the Arkansas Work Pays Program, including an Arkansas Work Pays Program application.

20 CAR § 503-1502. Arkansas Work Pays Program eligibility requirements.

(a) A participant must meet the following requirements:

(1) Be employed at least thirty (30) days prior to the date of the Arkansas Work Pays Program application;

(2) Have care and custody of a related minor child, including family cap child (20 CAR § 502-323(b)) and child receiving Supplemental Security Income;

(3) Be a resident of the State of Arkansas;

(4)(A) Meet the citizenship or alienage requirement.

(B) Refer to 20 CAR § 502-407;

(5) Apply for the Arkansas Work Pays Program within six (6) months of transitional employment assistance (TEA) case closure;

(6)(A) Received TEA cash assistance for at least three (3) months, including months of deferral.

(B) These months do not have to be consecutive.

(C) Months from other states do not count;

(7) Have not received more than twelve (12) months of Arkansas Work Pays Program benefits;

(8) Meet work hours requirement:

(A) For initial eligibility:

(i) Was engaged in paid work activities for a minimum of twenty-four (24) hours per week; and

(ii) Met the federal participation rate for the past month; and

(B) For ongoing eligibility, must:

(i) Be in paid work activities for a minimum of twenty-four (24) hours per week; and

(ii) Meet the federal participation requirement for one (1) of the past three (3) months and for at least three (3) of the past six (6) months;

(9)(A) Have income below one hundred fifty percent (150%) of the federal poverty level for the family size, including Supplemental Security Income and family cap children.

(B) Supplemental Security Income and family cap children are counted in the household size when determining federal poverty level (FPL), even if they are not part of the budget unit.

(C) **Note.**

(i) Stepparents with no child in common are not part of the Arkansas Work Pays Program budget unit.

(ii) Therefore, the income of the stepparent is disregarded;

(10) Comply with the Arkansas Work Pays Personal Responsibility Agreement;

(11) Comply with Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration requirements, including assignment of support and cooperation in establishing paternity and/or support unless good cause exists; and

(12) Comply with drug screening and testing requirements.

(b) **Note.** If a participant has reached or exceeded the sixty-month federal time limit when the participant applies (or reapplies) for the Arkansas Work Pays Program, the application will be denied.

20 CAR § 503-1503. Arkansas Work Pays Program application process.

(a)(1) For participants interested in applying for the Arkansas Work Pays Program, the application must be completed and submitted via mail, email, or fax to the Department of Human Services for initial eligibility determination.

(2) The Arkansas Work Pays Program applicant must sign the application.

(3) If it is a two-parent household, both parents must sign the form.

(b) In accordance with Acts 2015, No. 1205, drug screenings of applicants and recipients will be conducted as a part of the application process during the initial eligibility determination and during reevaluation (redetermination).

(c) An applicant who has been determined to be job-ready must engage in job search activities while the application is being processed.

(d) Job-ready means a person has no physical, mental, job-skill barriers, or other barriers that prevent employment.

20 CAR § 503-1504. Determining initial eligibility.

(a) Employed 30 days prior to application date.

(1) For initial eligibility, the Program Eligibility Specialist will review the application to determine if the participant was employed at least thirty (30) days prior to the application date.

(2)(A) If the participant was not employed at least thirty (30) days prior to the application date, no initial interview will be scheduled.

(B) The application will be denied, and a TEA-1 will be sent as an adequate notice of the denial.

(3) No good cause will be given for not meeting initial eligibility.

(4) See 20 CAR §§ 503-302 and 503-303 for more information on adequate notices.

Example: An applicant submitted an application dated October 15. On the application, the applicant indicated employment began on September 16. Because the applicant was only employed twenty-nine (29) days, the application is denied.

(b) Automated system review.

(1)(A) If the participant was employed thirty (30) days prior to the application date, the Program Eligibility Specialist will review the following information in the automated system to further determine if the participant meets initial eligibility.

(B) Refer to 20 CAR § 503-1502.

(2) The participant must:

(A) Have care and custody of a related minor child, including family cap child and child receiving Supplemental Security Income;

(B) Meet the citizenship or alienage requirement;

(C) Apply for the Arkansas Work Pays Program within six (6) months of transitional employment assistance (TEA) case closure, unless the previous Arkansas Work Pays Program case closed due to insufficient hours;

(D)(i) Have received at least three (3) months of TEA cash assistance, including deferral and exemption months.

(ii) This includes TEA cases that close due to reaching the time limit or have been extended and earnings are included; and

(E) Not have received more than twelve (12) months of Arkansas Work Pays Program benefits.

(3)(A) If the participant fails to meet any of the initial eligibility requirements above at the time of application, the application will be denied.

(B) No initial interview will be scheduled.

(C) A TEA-1 will be sent as an adequate notice of the application's denial.

Example 1: Ms. Davis applied for the Arkansas Work Pays Program four (4) months after her TEA case closed. She received TEA cash assistance for nine (9) months. After reviewing additional eligibility information in the automated system, it was determined that Ms. Davis met the requirements. An initial interview can be scheduled.

Example 2: Ms. Wilson applied for the Arkansas Work Pays Program after her TEA case closed. She received TEA cash assistance for a total of two (2) months. Since she did not receive TEA for at least three (3) months, her application is denied.

(c) Income and work hours.

(1) If the participant meets the initial eligibility requirements discussed in subsections (a) and (b) of this section, the Program Eligibility Specialist will schedule an initial interview to review documentation of income and work hours for the thirty-day period prior to the date of application.

(2) No documentation of resources will be required, as the household's resources are totally disregarded.

(3) See subsection (g) of this section.

(d) Income.

(1)(A) The parent's gross earnings along with other countable income must be below the one hundred fifty percent (150%) federal poverty level for the family size.

(B) The federal poverty levels in the Appendix are updated annually.

(C) The following types of income are disregarded when determining initial (and ongoing) eligibility for the Arkansas Work Pays Program:

(i) Income of the child or children;

(ii) Income of the stepparent with no child in common; and

(iii) Child support.

(D) Refer to 20 CAR §§ 502-504 and 502-510 for unearned and earned income to disregard.

(2)(A) The Program Eligibility Specialist will deny the application if the participant fails to meet the income requirement upon receipt of initial work documentation.

(B) A TEA-1 will be sent as an adequate notice of the application denial.

(C) See 20 CAR §§ 503-302 and 503-303 for more information on adequate notices.

(3) To determine if the household meets the federal poverty level requirement for initial eligibility, the Program Eligibility Specialist will use one (1) of the appropriate calculations indicated below.

(4)(A) If the participant is paid weekly:

(i) Total the gross income actually received in the thirty-day period;

(ii)(a) Divide the total by four (4).

(b) See note below; and

(iii) Multiply by 4.334.

(B) **Note.** If the participant is paid weekly but received five (5) checks in the thirty-day period, divide total gross income by five (5) and multiply by 4.334.

(5)(A) If the participant is paid every two (2) weeks (biweekly):

(i) Total the gross income actually received in the thirty-day period;

(ii)(a) Divide the total by two (2).

(b) See note below; and

(iii) Multiply by 2.167.

(B) **Note.** If the participant is paid every two (2) weeks (biweekly) but received three (3) checks in the thirty-day period, divide total gross income by three (3) and multiply by 2.167.

(6) If the participant is paid twice a month (semi-monthly), total the gross income actually received in the thirty-day period, with no conversion.

Example: A participant who meets all the eligibility requirements applies on April 7. The Program Eligibility Specialist will verify the income for the period March 8 through April 6, which is the thirty-day period prior to the date of application.

(e) Work hours requirement.

(1)(A) For initial eligibility, the participant must provide verification of work hours for the thirty-day period prior to the date of application.

(B) The verification can be provided:

- (i) By fax;
- (ii) By mail;
- (iii) By email; or
- (iv) In person.

(C) The agency will accept verification of earnings from the employer, check stubs, payroll printouts, etc.

(D) If the information received is not accurate and would affect the participant's eligibility status, the supervisor (or designee) will be notified immediately.

(2)(A) The participant must be in a paid work activity, i.e., employed, at least twenty-four (24) hours per week.

(B) The participant must also meet the weekly federal participation requirement for the past thirty (30) days.

(C) The participant may be engaged in another countable work activity that, when combined with the paid work hours, will meet the federal Temporary Assistance for Needy Families work requirement for the family.

(3)(A) If the work hours requirement is met, the information will be documented in the automated system.

(B) If the work hours requirement is not met, the Arkansas Work Pays Program application will be denied.

(C)(i) A TEA-1 will be sent as an adequate notice of application denial.

(ii) See 20 CAR §§ 503-302 and 503-303 for information on adequate notices.

(4) The federal participation requirement is as follows:

(A)(i) Twenty-four (24) hours per week for a single-parent household with a child under the age of six (6), even if the child is not included in the budget unit.

(ii) All twenty-four (24) hours must be in a paid work activity;

(B)(i) Thirty (30) hours per week for a single parent with a child age six (6) or older.

(ii) If the household can only participate in a paid work activity for twenty-four (24) hours per week, all six (6) of the remaining hours must be in a core activity.

(iii) Noncore activities cannot be used for the remaining six (6) hours;

(C)(i) Thirty-five (35) hours per week for a two-parent household not receiving federally funded childcare.

(ii) If the household can only participate in a paid work activity for twenty-four (24) hours per week, six (6) of the remaining hours must be in a core activity.

(iii) The last five (5) hours may be core or noncore; and

(D)(i) Fifty-five (55) hours per week for a two-parent household receiving federally funded childcare.

(ii) If the household can only participate in a paid work activity for twenty-four (24) hours per week, twenty-six (26) of the remaining hours must be in a core activity.

(iii) The last five (5) hours may be core or noncore.

Example 1: Ms. Adams is a single parent with a child over the age of six (6). She applied for the Arkansas Work Pays Program on July 1. It has been verified that she has been employed since May. Check stubs submitted for the thirty-day period before the application date show she worked

thirty (30) hours per week. Ms. Adams meets the requirement to be employed (in a paid work activity) for twenty-four (24) hours per week. She also meets the federal participation requirement of thirty (30) hours per week. If otherwise eligible, the application may be approved.

Example 2: Mr. Thomas is a single parent with teenaged children. He applied for the Arkansas Work Pays Program on July 7 after receiving TEA for eight (8) months. His TEA case closed in April. He has been employed since March. Check stubs indicate he works twenty-four (24) hours per week. He also attends college at night and has only used two (2) months of career and technical education. He is taking a three-credit-hour course in management and will graduate in December. Mr. Thomas meets the work requirements. He is employed for twenty-four (24) hours per week. He is given three (3) hours of actual class time per week. He will also be given three (3) hours of homework/study time because he is taking three (3) credit hours. This brings his total countable hours to thirty (30) per week. If otherwise eligible, the application may be approved.

(f) Drug screening questionnaire requirements.

(1)(A) All applicants will be required to complete a drug assessment questionnaire (DAQ) as part of the initial eligibility determination process.

(B) The DAQ is a part of the Arkansas Work Pays Program application.

(2) Once the DAQ has been completed, the following actions will be taken:

(A) If the applicant answers “No” to all questions on the DAQ concerning illegal drug use, the application will be processed; or

(B) If the applicant answers "Yes" to any one (1) of the questions on the DAQ concerning illegal drug use, then the Program Eligibility Specialist must contact the Temporary Assistance for Needy Families Family Support Unit of the Department of Human Services for drug testing coordination.

(3) Refusal and/or failure, without good cause, to complete or submit a drug screening questionnaire during the initial eligibility process will result in denial of the application.

(4) Refer to 20 CAR § 503-1505 and 20 CAR § 503-1506(g).

(g) Scheduling the initial interview.

(1)(A) No later than two (2) business days from the date the application was received, the Program Eligibility Specialist will send a TEA-1 (Notice of Action) to schedule the initial interview.

(B) The notice must indicate what documentation should be brought to the interview in order to establish initial eligibility.

(2) During the initial interview, the Program Eligibility Specialist will:

(A) Present an overview of the program;

(B) Gather information; and

(C) Advise the participant of what and when information is needed.

(3)(A) If the participant misses the interview and does not contact the Program Eligibility Specialist to reschedule, the application will be denied.

(B) A TEA-1 will be sent as an adequate notice of the application denial.

(h) Rescheduling the initial interview.

(1) If the participant misses the initial interview, but it is rescheduled, the Program Eligibility Specialist will send a ten-calendar-day advance notice (TEA-1) to inform the participant of the:

(A) New appointment; and

(B) Penalties that may occur if they fail to attend as rescheduled (i.e., application denial).

(2) If a participant does not bring the requested documentation to the initial appointment:

(A) The Program Eligibility Specialist will provide the participant with a ten-calendar-day advance notice (TEA-1) requesting the exact documents needed to determine eligibility by the close of business on the tenth day; and

(B) If the documents are not provided, the application will be denied after the notice expires.

20 CAR § 503-1505. Application disposal.

(a) The Department of Human Services worker will dispose of the application for the Arkansas Work Pays Program by either approval or denial within thirty (30) days from the date of application.

(b) If the application is denied for failure to meet any of the initial eligibility requirements, including failure to complete or submit a drug assessment questionnaire, a TEA-1 must be sent as an adequate notice.

(c) See 20 CAR §§ 503-302 and 503-303.

20 CAR § 503-1506. Drug screenings.

(a)(1) In accordance with Acts 2015, No. 1205, drug screenings of Arkansas Work Pays Program applicants and participants will be conducted during initial eligibility determination and continued eligibility redetermination/reevaluation.

(2) The drug screenings will be used to determine whether there is a reasonable cause to believe the applicant or recipient engages in illegal drug use.

(3) Drug testing results and information will be kept confidential.

(b) Note.

(1) Employer-required drug screening and/or testing is separate from the Transitional Employment Assistance Program and Arkansas Work Pays Program drug screening and testing program.

(2) An employer's drug screening, testing, and/or test results cannot be used in place of this Arkansas Work Pays Program requirement.

(c) Exemptions from drug screening and testing.

(1) The following individuals are exempt from drug screening and testing requirements:

(A) A dependent child under the age of eighteen (18);

(B) A non-head-of-household minor parent who lives in the home of his or her:

(i) Parent;

(ii) Legal guardian; or

(iii) Other adult relative; and

(C) An individual who is a participant in the Career Pathways Program or a Community Investment Initiative under the Arkansas Work Pays Program.

(2) **Exception.** A head-of-household minor parent who applies for the Arkansas Work Pays Program and does not live with a parent, legal guardian, or other adult caretaker relative is not exempt from the drug-screening requirement.

(d) Cooperation with drug testing.

(1)(A) If the drug assessment questionnaire (DAQ) indicates a reasonable suspicion that an applicant/participant has engaged in illegal use of drugs, that person will be required to take a drug test.

(B) The Program Eligibility Specialist will email the Temporary Assistance for Needy Families Family Support Unit of the Department of Human Services regarding the DAQ's indicated use of illegal drugs.

(C) The Temporary Assistance for Needy Families Family Support Unit will coordinate with the individual for drug testing and/or treatment.

(D) The Temporary Assistance for Needy Families Family Support Unit will notify the Program Eligibility Specialist regarding participation status.

(2)(A) If the otherwise eligible applicant or participant refuses and/or fails to cooperate with the drug testing process, the Arkansas Work Pays Program case will be closed.

(B) If the individual reapplies for the Arkansas Work Pays Program and is otherwise eligible, he or she must submit to a drug test.

(3) If the result of the drug test is negative the case will be approved/remain open.

(4) If the result of the drug test is positive:

(A)(i) A plan of action will be developed in coordination with the individual.

(ii) The plan of action will include a substance abuse evaluation to determine the appropriate drug treatment plan and/or recovery support group or resource.

(iii) Failure to cooperate with the plan of action will result in case closure; or

(B)(i) If an applicant/participant that is otherwise eligible fails a drug test but has a valid prescription for the drug in question, the Arkansas Work Pays Program application/case will not be denied/closed pending additional testing.

(ii) The same urine sample from the first positive test will be used to conduct a drug confirmation test.

(iii) The results of the confirmation will be used to determine final eligibility for Arkansas Work Pays Program benefits.

(e) Referral for substance abuse evaluation and drug abuse treatment.

(1)(A) If the results of the drug confirmation test indicate usage of drugs, the Program Eligibility Specialist will refer the applicant or participant who is otherwise eligible for a substance abuse evaluation.

(B) An appropriate drug treatment plan and/or recovery support group or resource will then be determined.

(C) The treatment period should not exceed six (6) months.

(2) If the substance abuse evaluation indicates that the applicant or participant who is otherwise eligible does not need drug abuse treatment and/or drug recovery support:

(A) No drug treatment will be required; and

(B) The applicant or participant will continue to be eligible and the Department of Human Services will move forward with eligibility determination/reevaluation based on Arkansas Work Pays Program requirements.

(3) If the substance abuse evaluation indicates that the applicant or participant who is otherwise eligible does need drug abuse treatment and/or drug recovery support:

(A) The Program Eligibility Specialist will coordinate with the Temporary Assistance for Needy Families Family Support Unit to make sure the applicant/participant is referred to an appropriate drug treatment facility and/or recovery support group or resource; and

(B) After the referral has been made, the applicant or participant that is otherwise eligible has ten (10) business days to provide the following information to the Program Eligibility Specialist, as required under the drug treatment plan:

- (i) Verification of enrollment in an approved drug treatment program;
- (ii) Verification of placement on a waiting list for an approved drug treatment program; or
- (iii) Verification of attendance at an approved drug recovery support group/resource meeting.

(f) Compliance with drug abuse treatment plan of action.

(1)(A) The approved drug treatment plan and/or drug recovery support should not exceed a period of six (6) months.

(B) The six-month period will begin with the:

- (i) Date of the first treatment session in the drug abuse treatment program; or
- (ii) First date of attendance at a drug recovery support group/resource meeting.

(2) In order for an applicant or participant who is otherwise eligible to receive a full Arkansas Work Pays Program payment during this six-month treatment period, he or she must:

(A) Comply with the drug abuse treatment/drug recovery plan of action;
and

(B) Submit bi-weekly documentation of attendance and participation.

(3)(A) If the drug treatment plan requires more than six (6) months of care, the applicant or participant who is otherwise eligible must submit to a drug test after six (6) months of treatment in order to determine continued Arkansas Work Pays Program eligibility.

(B) If the result of the drug test is negative, the case will be approved/remain open.

(C)(i) If the result of the drug test is positive, a drug confirmation test will be conducted in accordance with subsection (d) of this section.

(ii) The results of the confirmation will be used to determine final eligibility.

(4) If the applicant or participant who is otherwise eligible is placed on a waiting list for an approved drug treatment program and no other comparable program is available, he or she will receive full Arkansas Work Pays Program payments until an approved treatment program becomes available.

(5)(A) Failure to comply without good cause with the treatment plan will result in case closure.

(B) Refer to 20 CAR § 503-1521.

(g) Good cause for noncompliance with drug treatment/recovery support.

(1)(A) The Program Eligibility Specialist will determine whether an applicant or otherwise eligible participant has good cause for failure to begin, participate in, and/or complete the drug treatment/recovery support resource program.

(B) The Program Eligibility Specialist must consider the circumstances of each case as well as the specific requirements of a drug treatment/recovery support program.

(2) If it is determined that good cause exists, the Program Eligibility Specialist and immediate supervisor will work together with the Temporary Assistance for Needy Families Family Support Unit and/or drug treatment/recovery support program to

amend the plan so it allows the applicant or participant to complete the requirements in a manner consistent with his or her abilities.

20 CAR § 503-1507. Career advancement plan.

(a)(1) Participants may need assistance increasing incomes while on a job.

(2) The participant may also need assistance learning the skills and behaviors to be a valued worker.

(b)(1) The Program Eligibility Specialist will work with the participant to create a career advancement plan.

(2) The plan will concentrate on:

- (A) Retaining a job;
- (B) Getting promoted;
- (C) Earning a pay raise;
- (D) Increasing hours; and
- (E) Acquisition of benefits.

(3) The plan will be used and modified during the entire time the participant receives Arkansas Work Pays Program benefits.

(c)(1) No later than two (2) business days after the application is approved, the Program Eligibility Specialist will contact the participant to schedule an in-person career advancement plan meeting to occur at a later date.

(2) The career advancement plan interview should occur at a time and location agreed upon by both the participant and the Program Eligibility Specialist.

(3) See 20 CAR § 503-1504(f).

(d) The Program Eligibility Specialist must have bi-weekly contact with the participant.

20 CAR § 503-1508. Reevaluation.

(a)(1) All Arkansas Work Pays Program cases will be reevaluated by the Department of Human Services processing unit every six (6) months to determine continued eligibility.

(2) The following criteria must be met:

(A) There must be an eligible child in the home; and

(B) The participant's gross earned income plus other countable income must be below the one hundred fifty percent (150%) federal poverty level for the family size.

(b)(1) The processing unit will also conduct yearly drug assessment reevaluations on all Arkansas Work Pays Program cases.

(2) Each nonexempt adult included in the Arkansas Work Pays Program budget unit must complete and return a separate drug assessment questionnaire (DAQ).

(3) Refer to 20 CAR § 503-1506(c) for a list of individuals who are exempt from drug screening and testing requirements.

(c)(1) The division's processing unit will mail a ten-day notice with a questionnaire to each nonexempt adult in the budget unit.

(2) The notice must indicate that:

(A) The questionnaire must be completed and returned in order to determine continued eligibility for the Arkansas Work Pays Program; and

(B)(i) The case will be closed if each questionnaire received in the household is not returned before the ten-day notice expires.

(ii) This action is based on 20 CAR § 503-1506, drug screenings.

(d) Once the DAQ has been completed and returned, the following actions will be taken:

(1) If all nonexempt participants in the budget unit answer "No" to all questions on the DAQ concerning illegal drug use, continued eligibility based on this requirement has been established; or

(2) If any nonexempt participant in the budget unit answers "Yes" to any questions on the DAQ concerning illegal drug use, then the Program Eligibility Specialist must contact the Temporary Assistance for Needy Families Family Support Unit of the Department of Human Services for drug testing coordination.

(e) **Note.**

(1) Refusal by either nonexempt adult on the case to complete the DAQ will result in case closure.

(2) The case will also be closed if either nonexempt adult on the case fails to return an individual DAQ before the ten-day notice expires.

Example: In a two-parent/adult Arkansas Work Pays Program case, one (1) parent is completing all of the hours for the household. However, both parents/adults are included in the Arkansas Work Pays Program budget unit. A total of two (2) advance notices (TEA-1) and two (2) DAQs must be sent to the household for the purpose of establishing the household's continued eligibility. Both DAQs must be completed and returned before the ten-day notices expire in order for the case to remain open. The case will be closed in ten (10) days if one (1) adult or both adults fail to comply.

(f) Any case closure as a result of drug screening or drug testing may be appealed in accordance with the appeal procedures in 20 CAR § 503-1001 et seq.

20 CAR § 503-1509. Arkansas Work Pays Program ongoing case management.

(a)(1) Case management is the process of coordinating and brokering the multiple services needed to achieve progress toward self-sufficiency.

(2) Case management will provide the participant with sufficient information on what to expect regarding changes and challenges in the world of work.

(3) The Program Eligibility Specialist will serve as a point of contact for participants and a point of accountability for the agency.

(4) The Program Eligibility Specialist has the overall responsibility for working with the participant from initial interview until case closure.

(b)(1) The Arkansas Work Pays Program focuses on post-employment services that are designed to provide job retention and advancement for employed post-Transitional Employment Assistance (TEA) participants.

(2) Post-employment services are an essential tool in preventing participants from returning to TEA by helping them:

- (A) Keep their current jobs;
- (B) Gain skills for a career;
- (C) Move toward better jobs; and
- (D) Become self-sufficient.

(3) The intent is to provide services that will help participants increase their earnings and retain their jobs so they can advance.

(c)(1) Program Eligibility Specialists will build relationships with participants and assist them by guiding, supporting, and encouraging them to:

- (A) Be accountable;
- (B) Set goals; and
- (C) Make good decisions.

(2) The Program Eligibility Specialist will also provide participants with the following resources, as appropriate, to aid them in achieving their goals:

- (A) Developing a career advancement plan;
- (B) Identifying career ladders, either with:
 - (i) The participant's current employer; or
 - (ii) Another employer or industry;
- (C) Referral to Career Pathways Training Initiative;
- (D) Referral to other Temporary Assistance for Needy Families initiative

providers;

- (E) Job search assistance through the Arkansas JobLink system;
- (F) Career counseling;
- (G) Working with employers to develop advancement strategies;
- (H) Removing specific barriers;

(I) Coordinating work supports (e.g., childcare, Medicaid, employment expenses, supportive services);

(J) Pursuing educational and/or training activities that develop or expand a participant's job expertise; and

(K) Referral to other appropriate service providers in the workforce development system available through the Arkansas Workforce Centers.

(d) Case management services will be provided as long as the participant is Arkansas Work Pays Program-eligible, and up to twelve (12) months after the Arkansas Work Pays Program case has been terminated due to earnings in excess of the federal poverty level.

(e) **Note.**

(1) Staffings are not required on Arkansas Work Pays Program cases.

(2) However, cases will be reviewed/reevaluated every six (6) months to determine continued eligibility.

(f) Every six (6) months, the following criteria must be met:

(1) There must be an eligible child in the home; and

(2)(A) The participant's gross earned income plus other countable income must be below the one hundred fifty percent (150%) federal poverty level for the family size.

(B) See FPL calculations in 20 CAR § 503-1510, work verification.

(g)(1) Every year, based on the anniversary date of the case, the following criteria must be met: All adults who are not exempt from drug screening and testing requirements must submit a completed drug assessment questionnaire.

(2) Refer to 20 CAR § 503-1508.

(h) The Program Eligibility Specialist will also review the work documentation each month to determine if there is a need to update the budget.

(i)(1) An update to the budget is only necessary if there has been a significant change in income.

(2) A significant change is one in which the new wage is equal to or exceeds one hundred fifty percent (150%) of the current federal poverty level for the family size and is not based on a temporary fluctuation such as overtime, seasonal bonus, etc.

(3) See 20 CAR § 503-403 for more information about significant changes.

20 CAR § 503-1510. Work verification.

(a)(1) The participant must provide biweekly verification of work hours or pay stubs for each week of every month.

(2) The verification can be provided:

(A) By fax;

(B) By mail;

(C) By scan and email; or

(D) In person.

(3) The agency will accept verification of earnings from the employer, check stubs, payroll printout, etc.

(4) The Program Eligibility Specialist must enter actual work activity hours for each week into the automated system.

(5) If the participant fails to follow through on a required activity, then immediate contact is required.

(b) The participant must:

(1) Be in a paid work activity at least twenty-four (24) hours per week; and

(2)(A) Meet the weekly federal participation requirement in one (1) of the past three (3) months and three (3) of the past six (6) months.

(B) See 20 CAR § 503-1504(c), (d), and (e) for the federal work participation requirements.

(c)(1) The Program Eligibility Specialist will encourage the participant to engage in a paid work activity equal to the federal work activity requirement, if possible.

(2)(A) If the participant is only capable of engaging in a paid work activity for twenty-four (24) hours a week, the Program Eligibility Specialist will determine:

(i) What work activities are allowable in the Arkansas Work Pays Program case; and

(ii) The number of hours the participant can participate.

(B) This evaluation is necessary due to federal limitations on certain work activities.

(d)(1) The Program Eligibility Specialist will:

(A) Discuss allowable work activities with the participant; and

(B) Assign the participant to additional work activities needed to meet the weekly federal work participation requirement.

(2) See 20 CAR § 503-1511 for allowable work activities.

Example 1: Mr. Parent works fifteen (15) hours a week, and Mrs. Parent works twenty (20) hours per week. They do not receive federally funded childcare. They meet the work participation requirement for a two-parent household not receiving federally funded childcare.

Example 2: Mr. and Mrs. Worker receive federally funded childcare. Mr. Worker is employed for twenty-five (25) hours per week and takes a three-credit-hour class at the local college. Mrs. Worker is assigned to Work Experience for twenty (20) hours per week, and GED for four (4) hours per week. The Worker family has twenty-five (25) paid hours, twenty-six (26) core hours, and four (4) noncore hours. (The core hours include twenty (20) hours work experience, three (3) hours of actual class time, and three (3) hours of study/homework time based on credit hours). They meet the federal participant requirement.

(e)(1)(A) The parent's gross earnings along with other countable income must be below the one hundred fifty percent (150%) federal poverty level for the family size.

(B) See Appendix B.

(2) The income of the child or children is disregarded.

(3) Unemployment insurance and child support are also disregarded when determining initial (and ongoing) eligibility for the Arkansas Work Pays Program.

(4) Refer to 20 CAR § 502-506 for unearned income to disregard.

(f) FPL calculation (ongoing eligibility).

(1)(A) If the participant is paid weekly:

(i) Total the gross income actually received in the month;

(ii)(a) Divide the total by four (4).

(b) See note below; and

(iii) Multiply by 4.334.

(B) **Note.** If the participant is paid weekly but received five (5) checks in the month, divide total gross income by and multiply by 4.334.

(2)(A) If the participant is paid every two (2) weeks (biweekly):

(i) Total the gross income actually received in the month;

(ii)(a) Divide the total by two (2).

(b) See note below; and

(iii) Multiply by 2.167.

(B) **Note.** If the participant is paid every two (2) weeks (biweekly) but received three (3) checks in the month, divide total gross income by three (3) and multiply by 2.167.

(3) If the participant is paid twice a month (semi-monthly), total the gross income actually received in the month with no conversion.

(4) **Note.** The Program Eligibility Specialist will review the work documentation each month to determine if there is a need to update the budget.

(5)(A) An update to the budget is only necessary if there has been a significant change in income.

(B) A significant change is:

(i) One in which the new wage is equal to or exceeds one hundred fifty percent (150%) of the current federal poverty level for the family size; and

(ii) Not based on a temporary fluctuation such as overtime, seasonal bonus, etc.

(C) See 20 CAR § 503-403 for more information on significant changes.

(g)(1) If the participant becomes unemployed while in the Arkansas Work Pays Program, the Arkansas Work Pays Program Eligibility Specialist should assist the participant to expeditiously find a new job.

(2) The participant should be referred to all available resources in the workforce development system that will assist them in becoming employed.

20 CAR § 503-1511. Allowable work activities.

(a) For a description and additional information about the allowable work activities, refer to 20 CAR §§ 503-123 – 503-134.

(b)(1) Paid work activities:

(A) Unsubsidized employment (core); and

(B) On-the-job training (core).

(2) **Note.** In the Arkansas Work Pays Program, subsidized employment and on-the-job training are not allowable work activities if subsidized with transitional employment assistance (TEA) funds.

(c) Unpaid work activities:

(1) Job search and job readiness assistance (core);

(2) Work experience training (core);

(3) Community service (core);

(4) Career and technical education (core);

(5) Providing childcare services for participants in community service (core);

(6) Education directly related to employment (noncore);

(7) Job skills training (noncore); and

(8) Attendance at secondary school (noncore).

20 CAR § 503-1512. Supportive services.

(a) All Arkansas Work Pays Program participants may be eligible for extended supportive services such as:

- (1) Childcare;
- (2) Transitional Medicaid or ARKids First;
- (3) Mentoring;
- (4) Financial credit counseling;
- (5) Individual development accounts; and
- (6) Any job retention services offered by the Department of Human Services.

(b) Arkansas Work Pays Program participants whose transitional employment assistance (TEA) cases closed due to employment may be eligible for the following supportive services within twelve (12) months of TEA closure:

(1)(A) Vehicle down payment assistance.

(B) See 20 CAR § 503-203;

(2)(A) Vehicle repair.

(B) See 20 CAR § 503-207;

(3)(A) Vehicle insurance.

(B) See 20 CAR § 503-206;

(4)(A) Vehicle sales tax.

(B) See 20 CAR § 503-204;

(5)(A) Vehicle tags.

(B) See 20 CAR § 503-205; and

(6)(A) ESS job retention.

(B) See 20 CAR § 503-218.

(C) **Note.**

(i) Extended supportive services (ESS) job retention supportive services are the same activity-related expenses listed in 20 CAR § 503-208.

(ii) In the Arkansas Work Pays Program, these services are used to help participants retain their current jobs.

20 CAR § 503-1513. Payment.

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(a) Payment amount.

(1) The Arkansas Work Pays Program payment amount is two hundred four dollars (\$204) monthly unless the participant is under a sanction.

(2) Arkansas Work Pays Program income will be countable in the same capacity as transitional employment assistance (TEA) cash in Supplemental Nutrition Assistance Program (food stamps) and Medicaid cases.

(3) All changes reported to the Program Eligibility Specialist will be entered in the automated system.

(b) Payment authorization.

(1)(A) The Program Eligibility Specialist will authorize the payment when verification of participation is received.

(B) The participant must provide verification of work hours such as payroll printouts, employer documents, or pay stubs for each week of the month.

(C) The verification may be submitted:

- (i) By fax;
- (ii) By mail;
- (iii) By email; or
- (iv) In person.

(2)(A) If the participant was in a paid work activity for at least twenty-four (24) hours per week and met the federal participation rate, full payment will be authorized.

(B) Refer to subsection (c) of this section.

(3)(A) If the participant does not meet the federal participation rate and good cause for noncompliance is established, a good cause payment will be authorized.

(B) Refer to subsection (c) of this section and 20 CAR § 503-1517.

(4) If the participant does not meet the federal participation rate and good cause is not established, a sanction payment may be authorized, except for the third consecutive sanction or third sanction out of the past six (6) months.

(5) No payment will be authorized for the:

(A) Third consecutive month of noncompliance; or

(B) Third month out of the past six (6) months.

(c) Payment process.

(1)(A) Families participating in the Arkansas Work Pays Program will receive a monthly cash assistance payment in the amount of two hundred four dollars (\$204), regardless of family size, for up to twenty-four (24) months, provided they meet the Arkansas Work Pays Program eligibility requirements.

(B) Arkansas Work Pays Program payments are made:

(i) Once per month; and

(ii) In the month following the month in which the participant participates.

(C) Payment will be made via the participant's electronic benefits transfer (EBT) card.

(2) For Temporary Assistance for Needy Families federal purposes, an Arkansas Work Pays Program case is considered cash assistance.

Example: Ms. Harris applies for the Arkansas Work Pays Program in July. In August, she provides verification of hours worked in July. The Program Eligibility Specialist determined that the participant met the work requirement and authorizes payment for July (to be paid in August) by placing a check in the payment box on the Arkansas Work Pays Program payment screen in the automated system.

(3)(A) By the fifth workday of each month, the Arkansas Work Pays Program participant should provide documentation to the Program Eligibility Specialist regarding work activity hours for each week of the preceding month.

(B) If the participant provides documentation by the fifth workday of the month the Program Eligibility Specialist will:

(i) Key the work hours into the automated system; and

(ii) Select the full payment indicator.

(4)(A) The Program Eligibility Specialist can average the weekly hours worked for the participation requirement if the participant worked over or under the required weekly participation hours during that month.

(B) However, the Program Eligibility Specialist must key actual weekly hours into the automated system.

(5) By the fifth workday of the month, participants must submit sufficient documentation showing they met the twenty-four (24) paid hours/week work requirement and/or the federal work participation requirement.

(6)(A) If no documentation or insufficient documentation is received by the fifth workday of the month, the Program Eligibility Specialist will send a ten-calendar-day advance notice (TEA-1) on the next business day.

(B) The notice will:

(i) Request proper documentation showing that participants met work requirements;

(ii) Request that participants show good cause for not meeting work participation, if appropriate;

(iii) Indicate that a home visit is required each month of noncompliance; and

(iv)(a) Indicate whether the cash assistance payment will be sanctioned by fifty percent (50%) or the case will be closed if information is not received or good cause is not established within ten (10) calendar days.

(b) See 20 CAR § 503-1519.

(7) If the requested information is submitted within ten (10) calendar days, the Program Eligibility Specialist will key the actual hours into the automated system and select the full payment indicator.

(8)(A) If the requested information is not submitted within ten (10) calendar days, the Program Eligibility Specialist will key the actual hours into the automated system and select the sanctioned payment indicator.

(B) Refer to 20 CAR § 503-1515 for noncompliance requirements.

20 CAR § 503-1514. Arkansas Work Pays Program bonus.

(a)(1) As an incentive to participants to retain their jobs, each Arkansas Work Pays Program participant may receive preset bonus payments after meeting certain job retention targets.

(2) To be eligible for the bonuses, the participant must have met the federal work participation rate requirement in each of the preceding months according to the bonus schedule below.

(3) All bonus payments will be made through the participant's EBT card but not counted as cash assistance.

(4) Bonuses will be keyed after the monthly cash assistance payment has been released.

(b)(1) The Program Eligibility Specialist will assess prior work participation and select the indicator in the automated system to trigger the appropriate bonus payment.

(2) The bonus payment indicator should be marked at the same time as the work participation is entered each month.

(3) See 20 CAR § 503-1513(c) for information on keying work participation hours.

(c) **Note.** Good cause months are classified as noncompliance and must be considered when determining if a participant is eligible for a bonus.

(d)(1) If the Arkansas Work Pays Program participant exits the program and reenters the program, the participant will be eligible for bonuses not already received when their Arkansas Work Pays Program eligibility has been reestablished.

(2) See 20 CAR § 503-1522 for the eligibility criteria for reentry to the Arkansas Work Pays Program.

(e) **Bonus 1, three (3) months job retention target.** Participants that meet the work participation requirements for three (3) consecutive months will receive a bonus in the amount of four hundred dollars (\$400).

(f) **Bonus 2, additional six (6) months job retention target.** Participants that meet the work participation requirements for an additional six (6) consecutive months,

not including the initial three (3) months in Bonus 1 above, will receive a job retention bonus in the amount of six hundred dollars (\$600).

(g) **Bonus 3, twelve (12) months job retention target.** Upon closure of the Arkansas Work Pays Program case due to time limits, participants that have met the work participation requirements for twelve (12) out of twelve (12) months will receive an exit bonus in the amount of eight hundred dollars (\$800).

(h) **Earnings' bonus, case closure due to earnings.**

(1) The Arkansas Work Pays Program participant may receive an earnings' bonus of one thousand two hundred dollars (\$1,200) anytime within the twelve-month case time limit if their income exceeds one hundred fifty percent (150%) of the federal poverty level (FPL) for their family size.

(2)(A) The Program Eligibility Specialist will notify the supervisor if it appears that earnings exceed FPL.

(B) The supervisor will review the documentation and determine eligibility for the bonus.

(C) If it is determined that earnings exceed FPL, the Program Eligibility Specialist will send a ten-calendar-day advance notice of closure to the participant (TEA-1).

(D) Once the notice expires, the Program Eligibility Specialist will close the case.

(E) After case closure, the supervisor will authorize the bonus to be issued.

(3) **Note.** Temporary fluctuations such as overtime, seasonal bonuses, etc., will not be considered when determining eligibility for the earnings bonus.

(4) See 20 CAR § 503-1510 for more information on FPL calculations.

20 CAR § 503-1515. Noncompliance.

(a) Noncompliance occurs when a person who is required to participate in certain activities fails to do so.

(b) Below are two (2) reasons that an Arkansas Work Pays Program participant's case may be deemed in noncompliance.

(c) The participant:

(1) Fails to comply with the assigned work requirement; and/or

(2) Refuses to cooperate with the Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration.

20 CAR § 503-1516. Compliance with the Office of Child Support Enforcement.

(a) The participant will be required to comply with the Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration.

(b) Failure to comply without good cause will result in a twenty-five percent (25%) sanction being imposed.

(c) This sanction is an automatic system-generated sanction and requires no action on the part of the Program Eligibility Specialist.

20 CAR § 503-1517. Good cause for work noncompliance.

(a) The sanction process will not be applied if the person demonstrates that he or she had good cause for not complying.

(b)(1) The determination of good cause is a decision made by each local office.

(2) For acceptable good cause reasons, refer to 20 CAR § 503-224(c).

(c) **Note.** Good cause months are classified as noncompliance and could result in case closure when determining if a participant has failed to comply for three (3) consecutive months or failed to comply for at least three (3) months out of the past six (6) months.

20 CAR § 503-1518. Determining good cause for work noncompliance.

(a) Once failure to comply with Arkansas Work Pays Program requirements has been established, the following procedures will be followed:

(1)(A) Contact the participant to give him or her the opportunity to explain why he or she failed to comply and make a determination of good cause, if appropriate.

(B) This contact will be in writing.

(C) If the initial contact is made by phone or face to face, the TEA-1 must be mailed as a ten-calendar-day advance notice, and the case record must be documented accordingly.

(D) The Program Eligibility Specialist will provide the participant, at a minimum, the following information:

(i) The specific act of noncompliance;

(ii) A reasonable time to establish good cause prior to applying the sanction;

(iii) That if the sanction is imposed, it will result in the Arkansas Work Pays Program payment being reduced;

(iv) That the sanction months in which benefits are received will continue to count toward the participant's twelve-month time limit; and

(v) A specific date and time for a home visit to be conducted before the notice expires;

(2) If the participant contacts the local office and good cause is determined to exist, then a good cause payment will be authorized; and

(3) In the event good cause is not established and the participant does not cooperate, the cash assistance payment will be reduced or cancelled, if appropriate.

20 CAR § 503-1519. Noncompliance sanction.

(a)(1) If on the fifth workday of the month, verification of hours has not been received, a ten-calendar-day advance notice (TEA-1) will be sent on the sixth workday of the month requesting documentation.

(2) If the documentation is not received within the ten (10) calendar days provided in the sanction notice (and good cause is not established), either:

(A) A fifty percent (50%) sanction (reduction in benefits) will be imposed on the Arkansas Work Pays Program case; or

(B) The case will be closed.

(3) Refer to 20 CAR § 503-1513(c) for more information on applying the sanction.

(b) If a participant does not comply with both the work requirement and the Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration, the sanction applied will not exceed fifty percent (50%).

(c)(1) If the participant fails to meet the participation requirements, then the participant will be sanctioned.

(2) Either a fifty percent (50%) sanction (reduction in benefits) will be imposed on the Arkansas Work Pays Program case or the case will be closed.

(d) Home visits will be required on Arkansas Work Pays Program cases when an act of noncompliance occurs (i.e., each month of noncompliance).

20 CAR § 503-1520. Lifting the sanction.

(a) If the participant fully participates in the next month following a sanctioned payment, the Program Eligibility Specialist will authorize a full payment.

(b) If the payment was reduced due to an Office of Child Support Enforcement of the Revenue Division of the Department of Finance and Administration sanction, the participant must fully cooperate with the Office of Child Support Enforcement before full payment can be authorized.

(c) The Office of Child Support Enforcement sanction will be lifted upon receipt of Office of Child Support Enforcement documentation verifying cooperation.

20 CAR § 503-1521. Case closure.

(a) An Arkansas Work Pays Program case will be closed if the participant fails to meet the general eligibility requirements, including, but not limited to, one (1) of the reasons listed below:

(1) Participant failed to meet the work requirement for three (3) continuous months;

(2) Participant failed to meet the work participation hours for at least three (3) of the past six (6) months;

(3)(A) No eligible child in the home.

(B) **Note.**

(i) A child is considered to be living with a parent or relative even though the child or adult is temporarily absent from the home not to exceed forty-five (45) consecutive days.

(ii) This allows assistance to be continued during short periods of time in which the adult or child may not be in the usual family setting (e.g., a child may visit the noncustodial parent for up to forty-five (45) days).

(iii) It is not intended to provide assistance to an adult on behalf of a child who, on a regular basis, lives in another adult's home the majority of the time (e.g., resides with another relative during the week to enable either the child or parent to attend school in another location);

(4) Unable to locate;

(5) No longer a resident of the state;

(6) Income exceeds one hundred fifty percent (150%) of the federal poverty level for family size; or

(7)(A) Participant requested case closure.

(B) **Note.**

(i) A ten-calendar-day advance notice (TEA-1) must be sent if the participant does not submit a written closure statement:

(a) Waiving the right to a ten-day notice; and

(b) Indicating he or she understands the consequences of supplying such information.

(ii) After the advance notice expires, the case may be closed.

(b)(1) An Arkansas Work Pays Program case will also be closed due to noncompliance with drug screening and testing requirements.

(2) An Arkansas Work Pays Program case will be closed if a participant, who is otherwise eligible, fails to:

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(A) Submit a completed drug screening questionnaire as part of the eligibility redetermination process, unless good cause has been established;

(B) Cooperate with drug testing and/or the assigned drug treatment plan of action, unless good cause has been established;

(C) Pass a subsequent drug test after completing drug treatment, with the positive drug test results having been validated by a confirmation test.

(3) Any denial of Arkansas Work Pays Program eligibility as a result of drug screening or drug testing may be appealed in accordance with the appeal procedures in 20 CAR § 503-1001 et seq.

(c) Refer to 20 CAR §§ 503-302 and 503-303 for information on sending advance or adequate notices in the above circumstances.

20 CAR § 503-1522. Reentry to the Arkansas Work Pays Program.

(a) Reentry into the Arkansas Work Pays Program is through the Transitional Employment Assistance Program.

(b) A participant can reenter the Arkansas Work Pays Program if they are within six (6) months of their last transitional employment assistance (TEA) case closure and all Arkansas Work Pays Program eligibility requirements are met.

(c)(1) A participant who leaves the Arkansas Work Pays Program due to insufficient work hours may reenter the program once they establish that they:

(A) Are in a paid work activity with a minimum of twenty-four (24) hours per week; and

(B) Met the federal work participation requirement for the past month.

(2) This means the six-month rule does not apply when Arkansas Work Pays Program cases close due to insufficient hours.

(3) Otherwise, reentry to the Arkansas Work Pays Program will occur through TEA eligibility and transition to the Arkansas Work Pays Program upon TEA case closure.

(d) **Note.**

(1) In order to close a case due to insufficient hours, the employer must be the party who limits the number of hours available for the participant to work (e.g., layoff, reduction of hours in work schedule, etc.).

(2) A case may not close due to insufficient hours if the participant limits the hours of work (e.g., quits employment, refuses to work a certain schedule, is a no show, is currently searching for a job, etc.).

20 CAR § 503-1523. Overpayment.

(a) Any payment received by or for a participant that is in excess of the amount that should have been paid is an overpayment.

(b) However, only those overpayments described in 20 CAR § 503-1201 et seq., will be reported and collection pursued.

Appendix B. Work Pays Income Limits

Link:

<https://CodeOfARRules.arkansas.gov/docs/CARCodeAppendices/Appendices/294/20CARpt.503AppendixB.pdf>

FINANCIAL IMPACT STATEMENT

PLEASE ANSWER ALL QUESTIONS COMPLETELY.

DEPARTMENT Department of Human Services

BOARD/COMMISSION Division of County Operations

PERSON COMPLETING THIS STATEMENT Andy Morgan

TELEPHONE NO. (501) 534-4125 **EMAIL** andy.morgan@dhs.arkansas.gov

To comply with Ark. Code Ann. § 25-15-204(e), please complete the Financial Impact Statement and email it with the questionnaire, summary, markup and clean copy of the rule, and other documents. Please attach additional pages, if necessary.

TITLE OF THIS RULE SNAP, TEA, and Work Pays Program Updates

1. Does this proposed, amended, or repealed rule have a financial impact?
Yes ☒ No ☐
2. Is the rule based on the best reasonably obtainable scientific, technical, economic, or other evidence and information available concerning the need for, consequences of, and alternatives to the rule?
Yes ☒ No ☐
3. In consideration of the alternatives to this rule, was this rule determined by the agency to be the least costly rule considered? Yes ☒ No ☐

If no, please explain:

(a) how the additional benefits of the more costly rule justify its additional cost;

(b) the reason for adoption of the more costly rule;

(c) whether the reason for adoption of the more costly rule is based on the interests of public health, safety, or welfare, and if so, how; and

(d) whether the reason for adoption of the more costly rule is within the scope of the agency's statutory authority, and if so, how.

4. If the purpose of this rule is to implement a *federal* rule or regulation, please state the following:
 - (a) What is the cost to implement the federal rule or regulation?

Current Fiscal Year

General Revenue \$5046.14
 Federal Funds \$11908.86
 Cash Funds 0
 Special Revenue 0
 Other (Identify) 0

 Total \$ 16,995.00

Next Fiscal Year

General Revenue 0
 Federal Funds 0
 Cash Funds 0
 Special Revenue 0
 Other (Identify) 0

 Total \$ 0.00

(b) What is the additional cost of the state rule?

Current Fiscal Year

General Revenue \$190,000.00
 Federal Funds _____
 Cash Funds _____
 Special Revenue _____
 Other (Identify) _____

 Total \$ 190,000.00

Next Fiscal Year

General Revenue _____
 Federal Funds _____
 Cash Funds _____
 Special Revenue _____
 Other (Identify) _____

 Total _____

5. What is the total estimated cost by fiscal year to any private individual, private entity, or private business subject to the proposed, amended, or repealed rule? Please identify those subject to the rule, and explain how they are affected.

Current Fiscal Year

\$ 0.00

Next Fiscal Year

\$ 0.00

6. What is the total estimated cost by fiscal year to a state, county, or municipal government to implement this rule? Is this the cost of the program or grant? Please explain how the government is affected.

Current Fiscal Year

\$ 195,046.14

Next Fiscal Year

\$ 0.00

The total one-time cost implement both Federal and State mandates equals \$206,995.00. Costs associated with SNAP Alien Eligibility updates resulting from Public Law 119-21 total \$16,995.00, with applicable Federal grants allocating divisible costs of \$5,046.14 State and \$11,908.86 Federal. Costs associated with updates resulting from State legislation total \$190,000.00, payable only by the State.

7. With respect to the agency's answers to Questions #5 and #6 above, is there a new or increased cost or obligation of at least one hundred thousand dollars (\$100,000) per year to a private individual, private entity, private business, state government, county government, municipal government, or to two (2) or more of those entities combined?

Yes ☐ No ☒

If yes, the agency is required by Ark. Code Ann. § 25-15-204(e)(4) to file written findings at the time of filing the financial impact statement. The written findings shall be filed simultaneously with the financial impact statement and shall include, without limitation, the following:

- (1) a statement of the rule's basis and purpose;
- (2) the problem the agency seeks to address with the proposed rule, including a statement of whether a rule is required by statute;
- (3) a description of the factual evidence that:
 - (a) justifies the agency's need for the proposed rule; and
 - (b) describes how the benefits of the rule meet the relevant statutory objectives and justify the rule's costs;
- (4) a list of less costly alternatives to the proposed rule and the reasons why the alternatives do not adequately address the problem to be solved by the proposed rule;
- (5) a list of alternatives to the proposed rule that were suggested as a result of public comment and the reasons why the alternatives do not adequately address the problem to be solved by the proposed rule;
- (6) a statement of whether existing rules have created or contributed to the problem the agency seeks to address with the proposed rule and, if existing rules have created or contributed to the problem, an explanation of why amendment or repeal of the rule creating or contributing to the problem is not a sufficient response; and
- (7) an agency plan for review of the rule no less than every ten (10) years to determine whether, based upon the evidence, there remains a need for the rule including, without limitation, whether:
 - (a) the rule is achieving the statutory objectives;
 - (b) the benefits of the rule continue to justify its costs; and
 - (c) the rule can be amended or repealed to reduce costs while continuing to achieve the statutory objectives.